Watanabe v. Derr, No. 1:22-cv-00168 (D. Haw.)

Watanabe v. Derr

No. 1:22-cv-00168 (D. Haw.) • ECF Nos. 5, 9, 22 • CourtListener docket 63239531 (RECAP, text from the filed PDFs) • retrieved 2026-10-29

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↑ **Otake, J.** ECF No. 5 · Order Dismissing Complaint in Part with Partial Leave Granted to Amend · 2022-05-19

ORDER DISMISSING COMPLAINT IN PART WITH PARTIAL LEAVE GRANTED TO AMEND re 1 - Signed by JUDGE JILL A. OTAKE on 5/19/2022. (1) Watanabe's claims against Defendants in their official capacities and against Warden Derr, Robl, and Dr. Kwon solely based on their supervisory positions are DISMISSED with prejudice.(2) Watanabe's request for injunctive relief under Bivens is DENIED.(3) Watanabe states a denial of adequate medical care claim in Count II against Nielsen in his individual capacity that may proceed.(4) Watanabe's threat to safety claim in Count I and his other denial of adequate medical care claims in Count II are DISMISSED with leave granted to amend. Watanabe may file an amended pleading that attempts to cure the noted deficiencies in these claims, if possible, on or before June 20, 2022.(5) If he chooses to file an amended pleading, Watanabe must comply with the Federal Rules of Civil Procedure and the Local Rules for the District of Hawaii, particularly LR10.4, which require an amended complaint to be complete itself, without reference to any prior pleading. An amended complaint must be short and plain, comply with Rule 8 of the Federal Rules of Civil Procedure, and be submitted on the court's prisoner civil rights form. An amended complaint will supersede the preceding complaint. Claims not realleged in an amended complaint may be deemed voluntarily dismissed.(6) IN THE ALTERNATIVE, Watanabe may notify the Court in writing on or before June 20, 2022 that he elects to proceed with his denial of adequate medical care claim in Count II against Nielsen, and this claim shall be served. Proceeding on his claim against Nielsen in Count II does not preclude Watanabe from later filing an amended pleading that cures the deficiencies in those claims dismissed with leave granted to amend, subject to the requirements of Fed. R. Civ. P. 15 and any applicable orders of this Court. If Watanabe fails to file either an amended pleading or a notice of election, the Court will direct that the Complaint be served as limited by this Order.(7) The Clerk is DIRECTED to send Watanabe a prisoner civil rights complaint form so that he may comply with the directions of this Order if he elects to file an amended pleading rather than immediately stand on his denial of adequate medical care claim in Count II against Nielsen. COURT'S CERTIFICATE OF SERVICE - Kekai Watanabe shall be served by First Class Mail to the address of record listed on the Notice of Electronic Filing (NEF) on 5/20/2022. A blank prisoner civil rights complaint form shall also be included in the mailing to Plaintiff. (jni) (Entered: 05/19/2022)

Before the Court is a Prisoner Civil Rights Complaint ("Complaint"), ECF No. 1, filed by pro se Plaintiff Kekai Watanabe ("Watanabe") pursuant to Bivens v. Six Unknown Named Agents of Federal Bureau of Narcotics, 403 U.S. 388 (1971).[1] Watanabe alleges that four officials[2] at the Federal Detention Center in Honolulu, Hawai'i ("FDC Honolulu") violated the Eighth Amendment by

[*2] threatening his safety and denying him adequate medical care. ECF No. 1 at 6–8. After screening the Complaint pursuant to 28 U.S.C. §§ 1915(e)(2) and 1915A(b), the Court concludes that Watanabe states a plausible denial of adequate medical care claim against Nurse Nielsen in his individual capacity. Watanabe's remaining claims are DISMISSED with partial leave granted to amend.

↑ **I. STATUTORY SCREENING**

The Court is required to screen all in forma pauperis prisoner pleadings against government officials pursuant to 28 U.S.C. §§ 1915(e)(2) and 1915A(a). See Byrd v. Phx. Police Dep't, 885 F.3d 639, 641 (9th Cir. 2018). Claims or complaints that are frivolous, malicious, fail to state a claim for relief, or seek damages from defendants who are immune from suit must be dismissed. See Lopez v. Smith, 203 F.3d 1122, 1126–27 (9th Cir. 2000) (en banc); Rhodes v. Robinson, 621 F.3d 1002, 1004 (9th Cir. 2010).

Screening under 28 U.S.C. §§ 1915(e)(2) and 1915A(a) involves the same standard of review as that used under Federal Rule of Civil Procedure 12(b)(6). See Rosati v. Igbinoso, 791 F.3d 1037, 1039 (9th Cir. 2015) (per curiam). Under this standard, a complaint must "contain sufficient factual matter, accepted as true, to state a claim to relief that is plausible on its face." Ashcroft v. Iqbal, 556 U.S. 662, 678 (2009) (internal quotation marks and citation omitted). A claim is [*3] "plausible" when the facts alleged support a reasonable inference that the plaintiff is entitled to relief from a specific defendant for specific misconduct. See id.

In conducting this screening, the Court liberally construes pro se litigants' pleadings and resolves all doubts in their favor. See Hebbe v. Pliler, 627 F.3d 338, 342 (9th Cir. 2010) (citations omitted). The Court must grant leave to amend if it appears the plaintiff can correct the defects in the complaint. See Lopez, 203 F.3d

[1]On May 19, 2021, Watanabe pleaded guilty to being a felon in possession of ammunition in violation of 18 U.S.C. §§ 922(g)(1) and 924(a)(2) **§amd** 2024. See United States v. Watanabe, Cr. No. 21-00066 HG (D. Haw.), ECF Nos. 25, 29. Watanabe is currently scheduled to be sentenced on October 6, 2022. See id., ECF No. 36.

[2]Watanabe names as Defendants Warden Estela Derr ("Warden Derr"), Unit Manager K. Robl ("Robl"), Staff Nurse Nielsen ("Nielsen"), and Chief Physician Dr. Kwon ("Dr. Kwon") in their individual and official capacities. ECF No. 1 at 1–3.

at 1130. When a claim cannot be saved by amendment, dismissal with prejudice is appropriate. See Sylvia Landfield Tr. v. City of Los Angeles, 729 F.3d 1189, 1196 (9th Cir. 2013).

↑ **II. BACKGROUND3**

Watanabe commenced this action by signing the Complaint on March 31, 2022. ECF No. 1 at 10. Watanabe alleges in Count I that the Bureau of Prisons ("BOP") and Robl, a unit manager at FDC Honolulu, were aware of Watanabe's "history of gang (Uso) affiliation." Id. at 6. Watanabe has been housed at FDC Honolulu in "unit 5A" alongside members of several "rival gangs" including "Murder Inc," "La Familia," "Paisa's," "Tango's," "MS-13," "Northeno," and "Soreno's." Id.[3]

[*4] On July 12, 2021, Watanabe was sitting at a table in unit 5A when four members of the Paisa's gang attacked him. Id. at 7. The disturbance grew to include more than 35 individuals. Id. Watanabe was "severely beaten" during the disturbance by the four gang members who initially attacked him and "other Latino gang members." Id. At one point, Watanabe was beaten by someone wielding a "lock in a sock." Id.

After order was restored in unit 5A, Watanabe along with approximately 20 other inmates were moved to the special housing unit ("SHU"). Id. Watanabe's injuries were "documented," and he was told "that he would be put on 'Sick Call.'" Id. At 8 p.m. on the day of the disturbance, Watanabe asked correctional officers Noni and Woodson (who are not named as defendants) to be seen by medical staff because he was experiencing "severe pain and headaches." Id. Watanabe described his symptoms to Nurse Nielsen, and Nielsen responded by telling Watanabe "'to stop being a cry baby.'" Id. Nielsen denied Watanabe's request to be taken to the hospital. Id.

Watanabe remained in the SHU for more than two months. Id. During this time, Watanabe "submitted multiple sick call and 'COP OUT' requests for medical attention." Id. According to Watanabe, he was given "over the counter pain medication" but "no actual treatment." Id. Watanabe was later diagnosed with a "fractured [coccyx] with bone chips in soft tissue around his tailbone." Id. These [*5] injuries caused Watanabe "severe pain." Id. Upon his release from the SHU, Watanabe returned to unit 5A along with the other inmates involved in the July 12, 2021 disturbance. Id.

Watanabe alleges in Count II that Dr. Kwon had an "opportunity to properly diagnose [his] injuries" between July 2021 and January 2022, but he failed to do so. Id. at 8. During this period, "Health Services ignored multiple request[s] for treatment." Id. When Health Services identified Watanabe's fractured coccyx in February 2022, Watanabe was sent to see a specialist. Id.

Watanabe seeks three million dollars and "an Order against [Defendant] Derr to follow United States law regarding the housing of federal inmates based on gang affiliation and determined security levels." Id. at 10.

↑ **III. DISCUSSION**

A. Legal Framework For Bivens Claims

In Bivens, the Supreme Court "recognized for the first time an implied right of action for damages against federal officers alleged to have violated a citizen's constitutional rights." Hernandez v. Mesa, 582 U.S. ___, 137 S. Ct. 2003, 2006 (2017) (per curiam) (internal quotation marks and citation omitted). Bivens involved a suit against individual federal agents who violated the Fourth Amendment's prohibition against unreasonable searches and seizures. See Bivens, 403 U.S. at 389–90. Since Bivens, the Supreme Court has expanded this implied [*6] cause of action only twice. See Ziglar v. Abbasi, 582 U.S. ___, 137 S. Ct. 1843, 1855 (2017) ("These three cases — Bivens, Davis, and Carlson — represent the only instances in which the Court has approved of an implied damages remedy under the Constitution itself."); Davis v. Passman, 442 U.S. 228 (1979) (suit under the Fifth Amendment's Due Process Clause for gender discrimination by a United States Congressman); Carlson v. Green, 446 U.S. 14 (1980) (suit under the Eighth Amendment's Cruel and Unusual Punishment Clause for failure to provide adequate medical treatment by federal prison officials).

[3] At screening, Watanabe's well-pleaded factual allegations are accepted as true. See, e.g., Nordstrom v. Ryan, 762 F.3d 903, 908 (9th Cir. 2014).

The Supreme Court "has made clear that expanding the Bivens remedy is now a 'disfavored' judicial activity." Abbasi, 582 U.S. at ___, 137 S. Ct. at 1857 (quoting Iqbal, 556 U.S. at 675). "This is in accord with the Court's observation that it has 'consistently refused to extend Bivens to any new context or new category of defendants.'"[4] Id. (quoting Malesko, 534 U.S. at 68). Indeed, the [*7] Court has suggested that "the analysis in [its] three Bivens cases might have been different if they were decided today." Id. at ___, 137 S. Ct. at 1856.

In deciding whether a Bivens remedy is available, courts first consider whether providing such a remedy is precluded by prior cases in which the Supreme Court or the Ninth Circuit has declined to recognize an implied right of action. See Lanuza v. Love, 899 F.3d 1019, 1025 (9th Cir. 2018). If a claim is precluded, that is the end of the matter. If a claim is not precluded, courts then apply a two-step test.

At step one, courts determine whether a plaintiff is seeking a Bivens remedy in a new context. See Ioane v. Hodges, 939 F.3d 945, 951 (9th Cir. 2018). The context is new "[i]f the case is different in a meaningful way from previous Bivens cases decided by [the Supreme Court]." Abbasi, 582 U.S. at ___, 137 S. Ct. at 1859. If the plaintiff is seeking a Bivens remedy in a new context, then courts proceed to the second step.

At step two, courts may extend Bivens only if two conditions are met. "First, the plaintiff must not have any other adequate alternative remedy." Ioane, 939 F.3d at 951 (internal quotation marks and citation omitted). "Second, there

(. . . continued) suit against prison guards at a private prison, see Minneci v. Pollard, 565 U.S. 118 (2012); and a Fifth Amendment suit against Department of Justice officials, see Abbasi, 582 U.S. ___, 137 S. Ct. 1843.

[*8] cannot be any 'special factors' that lead the court to believe that Congress, instead of the courts, should be the one to authorize a suit for money damages." Id. at 951–52 (some internal quotation marks, brackets, and citation omitted). Although the Supreme Court has yet to define the term, "special factors," it has explained that "the inquiry must concentrate on whether the Judiciary is well suited, absent congressional action or instruction, to consider and weigh the costs and benefits of allowing a damages action to proceed." Abbasi, 582 U.S. at ___, 137 S. Ct. at 1857–58.

B. Official Capacity Claims Under Bivens

Watanabe names the Defendants in both their individual and official capacities. See ECF No. 1 at 1–3. "A Bivens action can be maintained against a defendant in his or her individual capacity only, and not in his or her official capacity." Consejo de Desarrollo Economico de Mexicali, A.C. v. United States, 482 F.3d 1157, 1173 (9th Cir. 2007) (internal quotation marks, brackets, and citation omitted). "This is because a Bivens suit against a defendant in his or her official capacity would merely be another way of pleading an action against the United States, which would be barred by the doctrine of sovereign immunity." Id. (citation omitted). Thus, "[t]here is no such animal as a Bivens suit against a public official tortfeasor [*9] in his or her official capacity." Solida v. McKelvey, 820 F.3d 1090, 1094 (9th Cir. 2016) (internal quotation marks and citation omitted).

Any Bivens claims against Defendants in their official capacities are therefore DISMISSED with prejudice.

C. Supervisory Liability

Watanabe names as Defendants three supervisory officials at FDC Honolulu — that is, the warden, a unit manager, and the chief physician. ECF No. 1 at 1–3.

"In the limited settings where Bivens does apply, . . . Government officials may not be held liable for the unconstitutional conduct of their subordinates under a theory of respondeat superior." Iqbal, 556 U.S. at 676 (citations omitted). This is because "[t]he purpose of Bivens is to deter the officer." Abbasi, 582 U.S. at ___, 137 S. Ct. at 1860 (internal quotation marks and citation omitted). "Bivens is not designed to

[4]The Supreme Court declined to create a Bivens remedy in the following cases: a First Amendment suit against a federal employer, see Bush v. Lucas, 462 U.S. 367 (1983); a race discrimination suit against military officers, see Chappell v. Wallace, 462 U.S. 296 (1983); a substantive due process suit against military officers, see United States v. Stanley, 483 U.S. 669 (1987); a procedural due process suit against Social Security officials, see Schweiker v. Chilicky, 487 U.S. 412 (1988); a procedural due process suit against a federal agency for wrongful termination, see FDIC v. Meyer, 510 U.S. 471 (1994); an Eighth Amendment suit against a private halfway house operator under contract with the BOP, see Corr. Servs. Corp. v. Malesko, 534 U.S. 61 (2001); a claim of retaliation by Bureau of Land Management officials against plaintiff for his exercise of Fifth Amendment property rights, see Wilkie v. Robbins, 551 U.S. 537 (2007); an Eighth Amendment (continued . . .)

hold officers responsible for acts of their subordinates." Id. (citation omitted).

A Bivens claim must be "brought against the individual official for his or her own acts, not the acts of others." Id.; see also Jones v. McFadden, No. 1:09–cv– 00957–DLB (PC), 2010 WL 2196849, at *3 (E.D. Cal. May 28, 2010) ("[W]hen a named defendant holds a supervisorial position, the causal link between him and the claimed constitutional violation must be specifically alleged." (citations omitted)). Thus, to state a claim for relief under Bivens based on a theory of [*10] supervisory liability, the plaintiff must allege facts showing that supervisory defendants:

> (1) personally participated in the alleged deprivation of constitutional rights; (2) knew of the violations and failed to act to prevent them; or (3) promulgated or implemented a policy so deficient that the policy itself is a repudiation of constitutional rights and is the moving force of the constitutional violation.

Id. (quoting Hansen v. Black, 885 F.2d 642, 646 (9th Cir. 1989)) (internal quotation marks and other citation omitted).

Any claims against Warden Derr, Robl, Dr. Kwon solely based on their supervisory positions are DISMISSED with prejudice. See Fries v. Kernan, Case No. 1:18-cv-00652-LJO-SKO (PC), 2018 WL 11260954, at *8 (E.D. Cal. Dec. 5, 2018) ("[A]ny allegation that supervisory personnel . . . somehow liable solely based on the acts of those under his or her supervision, does not state a cognizable claim."). For a claim against Warden Derr, Robl, or Dr. Kwon to proceed, Watanabe must plausibly allege that each one of them violated his rights through their own actions. See Chavez v. United States, 683 F.3d 1102, 1109 (9th Cir. 2012) ("Bivens claims cannot proceed on a theory of respondeat superior, but must instead plead that a supervisor, by her 'own individual actions,' violated the Constitution." (citation omitted)).

D. Eighth Amendment

[*11] The Eighth Amendment governs the treatment of convicted prisoners and forbids "cruel and unusual punishments." U.S. Const. amend. VIII; see Sandoval v. County of San Diego, 985 F.3d 657, 667 (9th Cir. 2021). Although the Constitution "'does not mandate comfortable prisons,'" it does not "permit inhumane ones." Farmer v. Brennan, 511 U.S. 825, 832 (1994) (citations omitted). Prison officials, therefore, may not use excessive physical force against prisoners, they "must ensure that inmates receive adequate food, clothing, shelter, and medical care, and [they] must 'take reasonable measures to guarantee the safety of the inmates.'" Id. (citations omitted).

1. Failure To Protect

Watanabe alleges in Count I that FDC Honolulu officials have failed to protect him from harm by members of "rival gangs." ECF No. 1 at 6.

The Supreme Court has not explicitly held that a Bivens remedy is available under the Eighth Amendment for a threat to safety claim. The Ninth Circuit, however, has allowed a Bivens claim under the Eighth Amendment for a federal prison official's deliberate indifference to prisoner safety. See Doreh v. Rodriguez, 723 F. App'x 530, 530 (9th Cir. 2018) ("[T]hese allegations are sufficient to state a deliberate indifference to safety claim." (citation omitted)). Several district courts have also recognized failure to protect claims under Bivens. See McDaniels v. [*12] United States, No. 5:14-cv-02594-VBF-JDE, 2018 WL 7501292, at *5–6 (C.D. Cal. Dec. 28, 2018), report and recommendation adopted, 2019 WL 1045132 (C.D. Cal. Mar. 5, 2019); Lee v. Matevousian, No. 1:18-cv-00169-GSA-PC, 2018 WL 5603593, at *7–8 (E.D. Cal. Oct. 26, 2018) (concluding that a failure to protect claim was not a Bivens expansion); Marquez v. United States, Case No.: 3:18-cv-0434-CAB-NLS, 2018 WL 1942418, at *4 (S.D. Cal. Apr. 25, 2018).

Even assuming the existence of a Bivens remedy, Murphy fails to state a plausible claim. See Hernandez, 582 U.S. at ___, 137 S. Ct. at 2007 ("[D]isposing of a Bivens claim by resolving the constitutional question, while assuming the existence of a Bivens remedy — is appropriate in many cases."); Ansari v. Martinez, 859 F. App'x 842, 842 (9th Cir. 2021) ("The district court properly dismissed [the plaintiff's] Eighth Amendment claims because, even if a Bivens remedy is available for these claims, [the plaintiff] failed to allege facts sufficient to state a plausible claim." (citations omitted)).

The Eighth Amendment imposes on prison officials a duty to "take reasonable measures to guarantee the safety of the inmates." Farmer, 511 U.S. at 832 (internal quotation marks and citation omitted). Prison officials, therefore, "have a duty to protect prisoners from violence at the hands of other prisoners." Id. at 833 (internal quotation marks, alteration, and citation omitted).

[*13] A prison official violates the Eighth Amendment, however, only when two requirements are met. "First, the deprivation alleged must be objectively, sufficiently serious." Id. at 834 (citations omitted). "For a claim . . . based on a failure to prevent harm, the inmate must show that he is incarcerated under conditions posing a substantial risk of serious harm." Id. (citation and footnote omitted). Second, the plaintiff must show deliberate indifference — that is, that "the [prison] official kn[ew] of and disregard[ed] an excessive risk to inmate . . . safety." Id. at 837. "[T]he official must both be aware of facts from which the inference could be drawn that a substantial risk of serious harm exists, and he must also draw the inference." Id.

a. Prior To The July 12, 2021 Disturbance

Watanabe has not plausibly alleged that he faced a substantial risk of serious harm prior to July 12, 2021. Although prison officials housed "rival gangs" together in unit 5A, Watanabe does not allege that there was a credible threat of rival gang violence prior to July 12. For example, Watanabe does not allege that his gang — that is, Uso — had previous issues with the Paisa's, nor does Watanabe allege that he was specifically targeted for harm by Paisa's members because of his "history of gang . . . affiliation." ECF No. 1 at 6. Indeed, it is unclear if the four attackers were motivated by Watanabe's gang membership or something else.

[*14] To the extent Watanabe is suggesting that housing different gangs together necessarily amounts to an Eighth Amendment violation, he is mistaken. See Labatad v. Corr. Corp. of Am., 714 F.3d 1155, 1160 (9th Cir. 2013) ("[A]mong other problems, 'the number of gang members housed and the high representation of certain gangs would place an unmanageable burden on prison administrators were they required to separate inmates by gangs.'" (quoting Mayoral v. Sheahan, 245 F.3d 934, 939 (7th Cir. 2001) (alterations omitted)); Wilson v. Pierce County, Case No. 16-5455 RJB, 2017 WL 3876625 (W.D. Wash. Sept. 5, 2017) ("The Ninth Circuit has held that a jail's policy of housing rival gang members together does not amount to a per se violation of the Eighth Amendment." (citing Labatad, 714 F.3d at 1160)).

Moreover, Watanabe has not plausibly alleged that any Defendant acted with deliberate indifference to his safety prior to July 12, 2021. Watanabe does not say how any prison official knew of a substantial risk of gang violence and disregarded that risk. Watanabe does not allege that he complained to any prison official about his placement in unit 5A prior to July 12, nor does he allege that any inmate voiced concern about gang-on-gang violence prior to the July 12 disturbance. Even if prison officials knew both of Watanabe's historical affiliation with the Uso gang and that rival gangs were being housed together in unit 5A, that is not enough. See Murphy v. Shelby, No. C 07-02299 JF (PR), 2009 WL 773499, at *4 (N.D. Cal. [*15] Mar. 23, 2009) ("Even assuming that Defendants knew that Plaintiff and [another inmate] were members of rival gangs, this information alone is not sufficient to raise the inference that putting them in the same cell would create a substantial risk of serious harm[.]").

b. After The July 12, 2021 Disturbance

Watanabe alleges that he remained in the SHU for more than two months after the July 12, 2021 disturbance. ECF No. 1 at 7. Prison officials then returned Watanabe to unit 5A. Id.

Watanabe has not plausibly alleged that he currently faces a substantial risk of serious harm in unit 5A. Watanabe does not allege that the four men who attacked him on July 12 or anyone else has harmed him since he returned to unit 5A. Nor does he allege that anyone has attempted or even threatened to harm him.

Watanabe notes that two inmates in his unit — one a member of a "Northeno gang" and the other a member of a "Hawaiian gang" — got into a fight on March 24, 2022. Id. This single incident between two inmates, however, falls short of showing a substantial risk of serious harm to Watanabe. See Hudson v. Palmer, 468 U.S. 517, 526 (1984) ("Prisons, by definition, are places of involuntary confinement of persons who have a demonstrated proclivity for antisocial criminal, and often violent,

conduct."). Indeed, nothing suggests that these two inmates got into a fight because of their respective gang associations.

[*16] In addition, Watanabe has not plausibly alleged that a prison official is acting with deliberate indifference to his safety. Watanabe does not allege that he has complained to prison officials about his safety in unit 5A. Thus, Watanabe has not alleged that a prison official knows of the danger he is purportedly facing. See M.G. v. United States, 603 F. App'x 616, 617 (9th Cir. 2015) ("To plead deliberate indifference, [the plaintiff] must allege nonconclusory facts from which we can infer defendants . . . actually knew of the danger [the plaintiff] faced." (citations omitted)).

Watanabe's failure to protect claim is therefore DISMISSED with leave granted to amend.

2. Denial Of Adequate Medical Care

Watanabe alleges in Count II that he was denied adequate medical care following the July 12, 2021 disturbance. ECF No. 1 at 8.

As already noted, "Carlson recognized an implied claim under the Eighth Amendment's cruel and unusual punishment clause for prison officials' failure to provide adequate medical care." Hoffman v. Preston, 26 F.4th 1059, 1064 (9th Cir. 2022) (citation omitted). "To establish a claim of inadequate medical care, a prisoner must first show a 'serious medical need' by demonstrating that failure to treat a prisoner's condition could result in further significant injury or the unnecessary and wanton infliction of pain." Edmo v. Corizon, Inc., 935 F.3d 757, [*17] 785 (9th Cir. 2019) (per curiam) (some internal quotation marks and citation omitted). "If . . . a prisoner establishes a sufficiently serious medical need, that prisoner must then show the official's response to the need was deliberately indifferent." Id. at 786 (internal quotation marks, brackets, and citation omitted). "To show deliberate indifference, the plaintiff must show that the course of treatment the official chose was medically unacceptable under the circumstances and that the official chose this course in conscious disregard of an excessive risk to the plaintiff's health." Id. (internal quotation marks, brackets, and citation omitted). "Deliberate indifference is a 'high legal standard' beyond malpractice or gross negligence." Balla v. Idaho, 29 F.4th 1019, 1025–26 (9th Cir. 2022) (citation omitted).

a. Nurse Nielsen

Watanabe alleges that he was "severely beaten" by four members of the Paisa's gang and "other Latino gang members" on July 12, 2021. ECF No. 1 at 7. During the attack, someone beat Watanabe with a "lock in a sock." Id. Later that evening, Watanabe was suffering from "severe pain and headaches," and he asked to be seen by medical staff. Id. Watanabe "discussed his medical condition" with Nurse Nielsen and "begg[ed] for medical assistance," but Nielsen told him "to stop being a cry baby." Id. at 7–8. Nielsen also refused to send Watanabe to the hospital. Id. at 7.

[*18] Months later, Watanabe was diagnosed with a fractured coccyx and "bone chips in soft tissue around his tailbone." Id. These injuries caused Watanabe "severe pain." Id. Construed liberally, Watanabe's allegations plausibly state a denial of adequate medical care claim against Nielsen in his individual capacity that may proceed.

b. Other Prison Officials

Watanabe also alleges that he submitted "multiple sick call and 'COP OUT' requests for medical attention" during the over two months that he spent in the SHU. Id. Watanabe, however, fails to say what he said in these requests, to whom he submitted them, and what he was told in response. To the extent Watanabe alleges that Dr. Kwon "had an opportunity to properly diagnose [his] injuries, but failed to do so," id. at 8, Watanabe fails to say what interactions, if any, he had with Dr. Kwon. Moreover, although Watanabe alleges that he "received no actual treatment," id. at 7, he acknowledges that he was given over-the-counter pain medication and that he was sent to a specialist once his fractured coccyx was diagnosed, id. at 7–8. Thus, Watanabe has not plausibly alleged that any other prison official consciously disregarded a serious medical need. Watanabe's denial of adequate medical care claims against any Defendant other than Nielsen are therefore DISMISSED with leave granted to amend.

E. Injunctive Relief Under Bivens

[*19] In his request for relief, Watanabe seeks three million dollars and "an Order against [Warden] Derr to follow United States law regarding the housing of federal inmates based on gang affiliation and determined security levels." Id. at 10.

"Bivens does not encompass injunctive and declaratory relief[.]" Solida, 820 F.3d at 1093; see Higazy v. Templeton, 505 F.3d 161 (2d Cir. 2007) ("The only remedy available in a Bivens action is an award for monetary damages from defendants in their individual capacities." (citation omitted)); Bacon v. Core Civic, Case No.: 2:20-cv-00914-JAD-VCF, 2020 WL 3100827, at *6 (D. Nev. June 10, 2020) ("[I]injunctive relief may not be obtained through Bivens actions, which are limited to claims for monetary damages against persons in their individual capacities." (footnote omitted)). Thus, to the extent Watanabe seeks injunctive relief in this action, such relief is not available under Bivens.[5]

[*20] IV. CONCLUSION

(1) Watanabe's claims against Defendants in their official capacities and against Warden Derr, Robl, and Dr. Kwon solely based on their supervisory positions are DISMISSED with prejudice.

(2) Watanabe's request for injunctive relief under Bivens is DENIED.

(3) Watanabe states a denial of adequate medical care claim in Count II against Nielsen in his individual capacity that may proceed.

(4) Watanabe's threat to safety claim in Count I and his other denial of adequate medical care claims in Count II are DISMISSED with leave granted to amend. Watanabe may file an amended pleading that attempts to cure the noted deficiencies in these claims, if possible, on or before June 20, 2022.

(5) If he chooses to file an amended pleading, Watanabe must comply with the Federal Rules of Civil Procedure and the Local Rules for the District of Hawaii, particularly LR10.4, which require an amended complaint to be complete itself, without reference to any prior pleading. An amended complaint must be

(continued . . .) Id.; see also Carballo v. Barr, 491 F. Supp. 3d 860, 867 (D. Nev. 2020) ("[A] plaintiff may sue a federal officer in his or her official capacity, invoking jurisdiction under 28 U.S.C. § 1331 and the court's inherent equitable powers, and seek injunctive relief to remedy alleged constitutional violations."). For the reasons set forth above, however, Watanabe fails to state a colorable failure to protect claim, and Watanabe acknowledges that he is now receiving medical care for his fractured coccyx.

[*21] short and plain, comply with Rule 8 of the Federal Rules of Civil Procedure, and be submitted on the court's prisoner civil rights form. An amended complaint will supersede the preceding complaint. Claims not realleged in an amended complaint may be deemed voluntarily dismissed.

(6) IN THE ALTERNATIVE, Watanabe may notify the Court in writing on or before June 20, 2022 that he elects to proceed with his denial of adequate medical care claim in Count II against Nielsen, and this claim shall be served. Proceeding on his claim against Nielsen in Count II does not preclude Watanabe from later filing an amended pleading that cures the deficiencies in those claims dismissed with leave granted to amend, subject to the requirements of Fed. R. Civ. P. 15 and any applicable orders of this Court. If Watanabe fails to file either an amended pleading or a notice of election, the Court will direct that the Complaint be served as limited by this Order.

(7) The Clerk is DIRECTED to send Watanabe a prisoner civil rights complaint form so that he may comply with the directions of this Order if he elects to file an amended pleading rather than immediately stand on his denial of adequate medical care claim in Count II against Nielsen.

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[*22] IT IS SO ORDERED.

DATED: Honolulu, Hawai'i, May 19, 2022.

[5] "[A] prisoner may bring a non-Bivens action for injunctive relief to stop Eighth Amendment violations based on conditions of confinement." Pinson v. Othon, No. CV-20-00169-TUC-RM, 2020 WL 6273410, at *5 (D. Ariz. Oct. 26, 2020) (citation omitted). To bring such a claim, a prisoner must:

(1) invoke jurisdiction under 28 U.S.C. § 1331, (2) allege facts to state a colorable ongoing Eighth Amendment claim, (3) name as a defendant the person who would be responsible for carrying out any order for injunctive relief, and (4) request particular injunctive relief that is specifically targeted to resolving the ongoing Eighth Amendment violation. (continued . . .)

Watanabe v. Derr, et al., Civil No. 22-00168 JAO-RT; ORDER DISMISSING COMPLAINT IN PART WITH PARTIAL LEAVE GRANTED TO AMEND

↑ **Otake, J.** ECF No. 9 · Order Dismissing First Amended Complaint in Part and Directing Service · 2022-08-02

ORDER DISMISSING FIRST AMENDED COMPLAINT IN PART AND DIRECTING SERVICE re 8 - Signed by JUDGE JILL A. OTAKE on 8/2/2022. (1) Watanabe states a denial of adequate medical care claim in Count II against Nielsen in his individual capacity that may proceed.(2) Watanabe's failure to protect claims in Count I and his other denial of adequate medical care claim in Count II are DISMISSED without prejudice. Dismissal of these claims does not foreclose Watanabe from later filing an amended pleading, subject to the requirements of Federal Rule of Civil Procedure 15 and any applicable orders of this Court.(3) The United States Marshal is ORDERED to serve the FAC, ECF No. 8, and a summons on Defendant Francis Nielsen, in addition to the United States, as directed by Watanabe, according to the requirements of Federal Rule of Civil Procedure 4(i). After service is perfected, Defendant Nielsen shall file a responsive pleading within the time allowed under Fed. R. Civ. P. 12.COURT'S CERTIFICATE OF SERVICE - Kekai Watanabe shall be served by First Class Mail to the address of record listed on the Notice of Electronic Filing (NEF) on 8/3/2022. (jni) (Entered: 08/02/2022)

Before the Court is a First Amended Prisoner Civil Rights Complaint ("FAC"), ECF No. 8, filed by pro se Plaintiff Kekai Watanabe ("Watanabe" or "Plaintiff") pursuant to Bivens v. Six Unknown Named Agents of Federal Bureau of Narcotics, 403 U.S. 388 (1971).[1] Watanabe alleges that four officials[2] at FDC [*2] Honolulu violated the Eighth Amendment by threatening his safety and denying him adequate medical care. ECF No. 8 at 6–9. After screening the FAC pursuant to 28 U.S.C. §§ 1915(e)(2) and 1915A(b), the Court again concludes that Watanabe states a plausible denial of adequate medical care claim against Nurse Nielsen in his individual capacity. That claim shall be served and requires a response. Watanabe's remaining claims are DISMISSED without prejudice.

↑ **I. STATUTORY SCREENING**

The Court is required to screen all in forma pauperis prisoner pleadings against government officials pursuant to 28 U.S.C. §§ 1915(e)(2) and 1915A(a). See Byrd v. Phx. Police Dep't, 885 F.3d 639, 641 (9th Cir. 2018). Claims or complaints that are frivolous, malicious, fail to state a claim for relief, or seek damages from defendants who are immune from suit must be dismissed. See Lopez v. Smith, 203 F.3d 1122, 1126–27 (9th Cir. 2000) (en banc); Rhodes v. Robinson, 621 F.3d 1002, 1004 (9th Cir. 2010).

Screening under 28 U.S.C. §§ 1915(e)(2) and 1915A(a) involves the same standard of review as that used under Federal Rule of Civil Procedure 12(b)(6). See Rosati v. Igbinoso, 791 F.3d 1037, 1039 (9th Cir. 2015) (per curiam). Under

> (. . . continued) Manager K. Robl ("Robl"), Staff Nurse Francis Nielsen ("Nielsen"), and Chief Doctor Nathan Kwon ("Dr. Kwon") in their individual capacities. ECF No. 8 at 1– 3.

[*3] this standard, a complaint must "contain sufficient factual matter, accepted as true, to state a claim to relief that is plausible on its face." Ashcroft v. Iqbal, 556 U.S. 662, 678 (2009) (internal quotation marks and citation omitted). A claim is "plausible" when the facts alleged support a reasonable inference that the plaintiff is entitled to relief from a specific defendant for specific misconduct. See id.

In conducting this screening, the Court liberally construes pro se litigants' pleadings and resolves all doubts in their favor. See Hebbe v. Pliler, 627 F.3d 338, 342 (9th Cir. 2010) (citations omitted). The Court must grant leave to amend if it appears the plaintiff can correct the defects in the complaint. See Lopez, 203 F.3d at 1130. When a claim cannot be saved by amendment, dismissal with prejudice is appropriate. See Sylvia Landfield Tr. v. City of Los Angeles, 729 F.3d 1189, 1196 (9th Cir. 2013).

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[1] On May 19, 2021, Watanabe pleaded guilty to being a felon in possession of ammunition in violation of 18 U.S.C. §§ 922(g)(1) and 924(a)(2) **§amd** 2024. See United States v. Watanabe, Cr. No. 21-00066 HG (D. Haw.), ECF Nos. 25, 29. Watanabe is currently scheduled to be sentenced on October 6, 2022. See id., ECF No. 36. Watanabe is presently in custody at the Federal Detention Center in Honolulu, Hawai'i ("FDC Honolulu"). See Federal Bureau of Prisons, https://www.bop.gov/inmateloc/ (select "Find By Number"; enter "94102-022" in "Number" field; and select "Search") (last visited August 2, 2022).

[2] Watanabe names as Defendants Warden Estela Derr ("Warden Derr"), Unit (continued . . .)

II. BACKGROUND[3]

In 2021, Watanabe was housed in "unit 5A" at FDC Honolulu with members of various gangs including "Uso," "Murder Inc," "La Familia," "Paisa's," "Tango's," "MS-13," "Northeno," and "Soreno's." ECF No. 8 at 6–7. Unit 5A's inmate population also included "deportable aliens, pre-sentence inmates, pre-trial inmates, high security inmates through minimum security inmates[,] and inmates[3] [*4] that have pending orders for civil commitment due to psychiatric issues." Id. at 6. Watanabe has a "history of gang (Uso) affiliation," and Robl and other "staff at FDC Honolulu" were aware of this affiliation. Id.

On July 12, 2021, Watanabe was sitting at a table in unit 5A when four members of the Paisa's gang attacked him. Id. at 7. The disturbance eventually included more than 35 "combatants." Id. Watanabe was "severely beaten" during the disturbance by the four gang members who initially attacked him and also "other Latino gang members." Id. At one point, Watanabe was beaten by someone wielding a "lock in a sock." Id.

After order was restored in unit 5A, approximately 20 inmates including Watanabe were moved to the special housing unit ("SHU"). Id. Watanabe's injuries were "documented," and he was told "that he would be put on 'Sick Call.'" Id. At 8 p.m. on the day of the disturbance, Watanabe asked correctional officers Noni and Woodson (who are not named as defendants) to be seen by medical staff because he was experiencing "severe pain and headaches." Id. Watanabe described his symptoms to Nurse Nielsen, and Nielsen responded by telling Watanabe "'to stop being a cry baby.'" Id. Nielsen denied Watanabe's request to be taken to the hospital. Id.

Watanabe remained in the SHU for more than two months. Id. During this time, Watanabe "submitted multiple sick call and 'COP OUT' requests for medical [*5] attention." Id. According to Watanabe, he was given "over the counter pain medication" but "no actual treatment." Id. Watanabe was later diagnosed with a "fractured [coccyx] with bone chips in soft tissue around his tailbone." Id. These injuries caused Watanabe "severe pain." Id. Upon his release from the SHU, Watanabe returned to unit 5A along with the other inmates involved in the July 12, 2021 disturbance. Id.

Watanabe alleges Dr. Kwon had an "opportunity to properly diagnose [his] injuries" between July 2021 and January 2022, but he failed to do so. Id. at 9. During this period, "Health Services ignored multiple request[s] for treatment." Id. When Health Services identified Watanabe's fractured coccyx in February 2022, it agreed to send Watanabe to a specialist. Id. According to Watanabe, he had submitted to Dr. Kwon "11 emails and COP OUTS" seeking medical attention. Id. at 8.

Watanabe commenced this action by signing the original Complaint on March 31, 2022. ECF No. 1 at 10. In the original Complaint, Watanabe alleged that Warden Derr, Robl, Nielsen, and Dr. Kwon violated the Eighth Amendment by threatening his safety and denying him adequate medical care. Id. at 6–8.

On May 19, 2022, the Court issued an Order Dismissing Complaint in Part with Partial Leave Granted to Amend. ECF No. 5. The Court concluded, in relevant part, that Watanabe failed to allege a plausible failure to protect claim [*6] based on events either before or after the July 12, 2021 disturbance. Id. at 11–16. The Court further concluded that Watanabe stated a plausible denial of medical care claim against Nielsen but no other Defendant. Id. at 16–18. The Court gave Watanabe the choice of proceeding with his claim against Nielsen or filing an amended pleading that cured the deficiencies in his other claims. Id. at 20–21.

The Court received the FAC on July 7, 2022. ECF No. 8. In the FAC, Watanabe maintains that Warden Derr, Robl, Nielsen, and Dr. Kwon violated the Eighth Amendment by threatening his safety and denying him adequate medical care. Id. at 6–9. Watanabe seeks "$3,000,000 for pain and suffering at the hands of the Defendants." Id. at 11.

III. DISCUSSION

A. Legal Framework For Bivens Claims

In Bivens, the Supreme Court "recognized for the first time an implied right of action for damages against federal officers alleged to have violated a citizen's constitutional rights." Hernandez v. Mesa, 582 U.S. ___, 137 S. Ct. 2003, 2006 (2017) (per curiam) (internal quotation marks and citation omitted). Bivens

[3] At screening, Watanabe's well-pleaded factual allegations are accepted as true. See, e.g., Nordstrom v. Ryan, 762 F.3d 903, 908 (9th Cir. 2014).

involved a suit against individual federal agents who violated the Fourth Amendment's prohibition against unreasonable searches and seizures. See Bivens, 403 U.S. at 389–90. Since Bivens, the Supreme Court has expanded this implied cause of action only twice. See Ziglar v. Abbasi, 582 U.S. ___, 137 S. Ct. 1843, [*7] 1855 (2017) ("These three cases — Bivens, Davis, and Carlson — represent the only instances in which the Court has approved of an implied damages remedy under the Constitution itself."); Davis v. Passman, 442 U.S. 228 (1979) (suit under the Fifth Amendment's Due Process Clause for gender discrimination by a United States Congressman); Carlson v. Green, 446 U.S. 14 (1980) (suit under the Eighth Amendment's Cruel and Unusual Punishment Clause for failure to provide adequate medical treatment by federal prison officials).

The Supreme Court "has made clear that expanding the Bivens remedy is now a 'disfavored' judicial activity." Abbasi, 582 U.S. at ___, 137 S. Ct. at 1857 (quoting Iqbal, 556 U.S. at 675). "This is in accord with the Court's observation that it has 'consistently refused to extend Bivens to any new context or new category of defendants.'"[4] Id. (quoting Malesko, 534 U.S. at 68). Indeed, the [*8] Supreme Court has indicated that "if [the Court] were called to decide Bivens today, [it] would decline to discover any implied causes of action in the Constitution." Egbert, 596 U.S. ___, 142 S. Ct. at 1809 (citation omitted).

In deciding whether a Bivens remedy is available, courts first consider whether providing such a remedy is precluded by prior cases in which the Supreme Court or the Ninth Circuit has declined to recognize an implied right of action. See Lanuza v. Love, 899 F.3d 1019, 1025 (9th Cir. 2018). If a claim is precluded, that is the end of the matter. If a claim is not precluded, courts then apply a two-step test.

At step one, courts determine whether a plaintiff is seeking a Bivens remedy in a new context. See Ioane v. Hodges, 939 F.3d 945, 951 (9th Cir. 2018). The context is new "[i]f the case is different in a meaningful way from previous Bivens cases decided by [the Supreme Court]." Abbasi, 582 U.S. at ___, 137 S. Ct. at 1859. If the plaintiff is seeking a Bivens remedy in a new context, then courts proceed to the second step.

(. . . continued) against prison guards at a private prison, see Minneci v. Pollard, 565 U.S. 118 (2012); a Fifth Amendment suit against Department of Justice officials, see Abbasi, 582 U.S. ___, 137 S. Ct. 1843; a Fourth and Fifth Amendment suit against a United States Border Patrol agent, see Hernandez v. Mesa, 589 U.S. ___, 140 S. Ct. 739 (2020); and a First and Fourth Amendment suit against a United States Border Patrol Agent, see Egbert v. Boule, 596 U.S. ___, 142 S. Ct. 1793 (2022).

[*9] At step two, courts may extend Bivens only if two conditions are met. First, "a court may not fashion a Bivens remedy if Congress already has provided, or has authorized the Executive to provide, 'an alternative remedial structure.'" Egbert, 596 U.S. at ___, 142 S. Ct. at 1804 (citations omitted)). "So long as Congress or the Executive has created a remedial process that it finds sufficient to secure an adequate level of deterrence, the courts cannot second-guess that calibration by superimposing a Bivens remedy." Id. at ___, 142 S. Ct. at 1807. "Second, if a claim arises in a new context, a Bivens remedy is unavailable if there are 'special factors' indicating that the Judiciary is at least arguably less equipped than Congress to 'weigh the costs and benefits of allowing a damages action to proceed.'" Id. at ___, 142 S. Ct. at 1803 (citation omitted). "If there is even a single 'reason to pause before applying Bivens in a new context,' a court may not recognize a Bivens remedy." Id. (citation omitted). Although the Supreme Court has yet to define "special factors," it has explained that "the inquiry must concentrate on whether the Judiciary is well suited, absent congressional action or instruction, to consider and weigh the costs and benefits of allowing a damages action to proceed." Abbasi, 582 U.S. at ___, 137 S. Ct. at 1857–58.

[4]The Supreme Court declined to create a Bivens remedy in the following cases: a First Amendment suit against a federal employer, see Bush v. Lucas, 462 U.S. 367 (1983); a race discrimination suit against military officers, see Chappell v. Wallace, 462 U.S. 296 (1983); a substantive due process suit against military officers, see United States v. Stanley, 483 U.S. 669 (1987); a procedural due process suit against Social Security officials, see Schweiker v. Chilicky, 487 U.S. 412 (1988); a procedural due process suit against a federal agency for wrongful termination, see FDIC v. Meyer, 510 U.S. 471 (1994); an Eighth Amendment suit against a private halfway house operator under contract with the BOP, see Corr. Servs. Corp. v. Malesko, 534 U.S. 61 (2001); a claim of retaliation by Bureau of Land Management officials against plaintiff for his exercise of Fifth Amendment property rights, see Wilkie v. Robbins, 551 U.S. 537 (2007); a suit under the Fifth, Eighth, and Fourteenth Amendments against United States Public Health Service personnel, see Hui v. Castaneda, 559 U.S. 799 (2010); an Eighth Amendment suit (continued . . .)

The Supreme Court has stated that this two-step test often resolves to a single question: "whether there is any rational reason (even one) to think that Congress is better suited to 'weigh the costs and benefits of allowing a damages [*10] action to proceed.'" Egbert, 596 U.S. at ___, 142 S. Ct. at 1805 (citation omitted). "Put another way, 'the most important question is who should decide whether to provide for a damages remedy, Congress or the courts?'" Id. at ___, 142 S. Ct. at 1803 (citation omitted). "If there is a rational reason to think that the answer is 'Congress' — as it will be in most every case, no Bivens action may lie." Id. (citation omitted). Thus, "if there is any reason to think that 'judicial intrusion' into a given field might be 'harmful' or 'inappropriate,'" or "even if there is the 'potential' for such consequences, a court cannot afford a plaintiff a Bivens remedy." Id. at ___, 142 S. Ct. at 1805–06 (citations omitted).

B. Eighth Amendment

The Eighth Amendment governs the treatment of convicted prisoners and forbids "cruel and unusual punishments." U.S. Const. amend. VIII; see Sandoval v. County of San Diego, 985 F.3d 657, 667 (9th Cir. 2021). Although the Constitution "'does not mandate comfortable prisons,'" it does not "permit inhumane ones." Farmer v. Brennan, 511 U.S. 825, 832 (1994) (citations omitted). Prison officials, therefore, may not use excessive physical force against prisoners, they "must ensure that inmates receive adequate food, clothing, shelter, and medical care, and [they] must 'take reasonable measures to guarantee the safety of the inmates.'" Id. (citations omitted).

1. Failure To Protect

[*11] Watanabe alleges in Count I that FDC Honolulu officials violated the Eighth Amendment because they failed to protect him from harm by other inmates.[5] ECF No. 8 at 6–8.

The Supreme Court has not explicitly held that a Bivens remedy is available under the Eighth Amendment for a failure to protect claim. The Court declines to decide whether Watanabe's failure to protect claims arise in a new context or if "special factors" caution against extending Bivens to those claims during screening pursuant to 28 U.S.C. §§ 1915(e)(2) and 1915A, without briefing by the parties upon either a motion to dismiss or for summary judgment. See Williams v. Kobayashi, Civ. No. 1:18-cv-00336 DKW-RLP, 2018 WL 5258614, at *7 (D. Haw. Oct. 22, 2018) (declining to decide during screening whether special factors [*12] cautioned against extending Bivens to substantive due process claims).

Even assuming the existence of a Bivens remedy, however, Watanabe fails to state a plausible claim. See Hernandez, 582 U.S. at ___, 137 S. Ct. at 2007 ("[D]isposing of a Bivens claim by resolving the constitutional question, while assuming the existence of a Bivens remedy — is appropriate in many cases."); Ansari v. Martinez, 859 F. App'x 842, 842 (9th Cir. 2021) ("The district court properly dismissed [the plaintiff's] Eighth Amendment claims because, even if a Bivens remedy is available for these claims, [the plaintiff] failed to allege facts sufficient to state a plausible claim." (citations omitted)).

The Eighth Amendment imposes on prison officials a duty to "take reasonable measures to guarantee the safety of the inmates." Farmer, 511 U.S. at 832 (internal quotation marks and citation omitted). Prison officials, therefore, "have a duty to protect prisoners from violence at the hands of other prisoners." Id. at 833 (internal quotation marks, alteration, and citation omitted).

A prison official violates the Eighth Amendment, however, only when two requirements are met. "First, the deprivation alleged must be objectively, sufficiently serious." Id. at 834 (citations omitted). "For a claim . . . based on a failure to prevent harm, the inmate must show that he is incarcerated under conditions posing a substantial risk of serious harm." Id. (citation and footnote omitted). Second, the plaintiff must show deliberate indifference — that is, that [*13] "the [prison] official

[5] At various points, Watanabe alleges that Defendants violated Bureau of Prisons policies. See ECF No. 8 at 6–8. The Supreme Court has never recognized a Bivens cause of action for purported violations of BOP policies. See Islaam v. Kubicki, 838 F. App'x 657, 661 (3d Cir. 2020). Indeed, as one court has stated, "[t]o allow a damages remedy for violations of BOP policy that do not amount to unconstitutional conduct would exceed the bounds of judicial function." Id. (citation omitted); see also deWilliams v. Groves, No. ED CV 17-356-GW (PLA), 2019 WL 994407, at *5 (C.D. Cal. Jan. 16, 2019) ("[T]he mere failure of a correctional officer to follow BOP rules, procedures, or policies does not rise to the level of a federal civil rights violation." (citation omitted)); Williams v. Rios, No. 1:10-cv-01207-AWI-GBC (PC), 2011 WL 1627177, at *3 (E.D. Cal. Apr. 28, 2011) ("[A] Bivens action must be founded upon a violation of constitutional rights, and a failure to adhere to administrative regulations does not equate to a constitutional violation." (internal quotation marks and citations omitted)).

kn[ew] of and disregard[ed] an excessive risk to inmate . . . safety." Id. at 837. "[T]he official must both be aware of facts from which the inference could be drawn that a substantial risk of serious harm exists, and he must also draw the inference." Id.

a. Prior To The July 12, 2021 Disturbance

Watanabe has not plausibly alleged that he faced a substantial risk of serious harm prior to July 12, 2021. Although prison officials housed in unit 5A various groups including "members from rival gangs," "deportable aliens," "pre-sentence inmates," "pre-trial inmates," "high security inmates through minimum security inmates," and inmates with "pending orders for civil commitment due to psychiatric issues," ECF No. 8 at 6, Watanabe has not plausibly alleged that there was a substantial risk of serious harm prior to July 12. For example, Watanabe does not allege that there was any gang-on-gang violence in unit 5A prior to July 12. Nor does he allege that his gang — that is, Uso — had previous issues with the Paisa's. Moreover, Watanabe has not plausibly alleged that he was specifically targeted for harm by Paisa's members because of his "history of gang . . . affiliation." Id. Indeed, it is unclear if the four attackers were motivated by Watanabe's gang membership or something else on July 12.

To the extent Watanabe is suggesting that housing members of different gangs together necessarily amounts to an Eighth Amendment violation, he is [*14] mistaken. See Labatad v. Corr. Corp. of Am., 714 F.3d 1155, 1160 (9th Cir. 2013) ("[A]mong other problems, 'the number of gang members housed and the high representation of certain gangs would place an unmanageable burden on prison administrators were they required to separate inmates by gangs.'" (quoting Mayoral v. Sheahan, 245 F.3d 934, 939 (7th Cir. 2001) (alterations omitted)); Wilson v. Pierce County, Case No. 16-5455 RJB, 2017 WL 3876625 (W.D. Wash. Sept. 5, 2017) ("The Ninth Circuit has held that a jail's policy of housing rival gang members together does not amount to a per se violation of the Eighth Amendment." (citing Labatad, 714 F.3d at 1160)).

Even if prison officials knew both of Watanabe's historical affiliation with the Uso gang and that rival gangs were being housed together in unit 5A, this is not enough to satisfy the first requirement of a failure to protect claim. See Murphy v. Shelby, No. C 07-02299 JF (PR), 2009 WL 773499, at *4 (N.D. Cal. Mar. 23, 2009) ("Even assuming that Defendants knew that Plaintiff and [another inmate] were members of rival gangs, this information alone is not sufficient to raise the inference that putting them in the same cell would create a substantial risk of serious harm[.]").

Moreover, Watanabe has not plausibly alleged that any Defendant acted with deliberate indifference to his safety prior to July 12, 2021. Although Watanabe alleges that Warden Derr housed together "rival gang members," pretrial detainees, [*15] and convicted inmates, and Robl placed "violent individuals" in the same housing unit and, sometimes, in the same cell, ECF No. 8 at 8, he does not say how any prison official knew of and disregarded an excessive risk to inmate safety. Watanabe does not allege that he complained to any prison official about his placement in unit 5A prior to July 12, nor does he allege that any other inmate voiced concern about gang-on-gang violence prior to the July 12 disturbance.

At one point, Watanabe alleges that Warden Derr and Robl "discussed the issue of housing rival gang members in the same units and cells with staff." Id. Watanabe does not say, however, when this discussion allegedly occurred. He also does not say what conclusion Warden Derr and Robl reached at the end of that discussion. In short, Watanabe has not plausibly alleged that Warden Derr and Robl knew of and disregarded an excessive risk to his safety prior to July 12 disturbance.

b. After The July 12, 2021 Disturbance

Watanabe appears to assert that his safety is currently threatened because prison officials returned him to unit 5A after he spent two months in the SHU. ECF No. 8 at 7.

Watanabe has not plausibly alleged that he currently faces a substantial risk of serious harm in unit 5A. Watanabe does not allege that the four men who [*16] attacked him on July 12 or anyone else has harmed him since he returned to unit 5A. Nor does he allege that anyone has attempted or even threatened to harm him.

Watanabe notes that two inmates in unit 5A — one a member of a "Northeno gang" and the other a member of a "Hawaiian gang" — got into a fight on March 24, 2022. Id. This single incident between two inmates, however, falls short of showing a substantial risk of serious harm to Watanabe. See Hudson v. Palmer, 468 U.S. 517, 526 (1984) ("Prisons, by definition, are places of involuntary confinement of persons who have a demonstrated proclivity for antisocial criminal, and often violent, conduct."). Indeed, nothing suggests that these two inmates got into a fight because of their respective gang associations.

In addition, Watanabe has not plausibly alleged that a prison official is acting with deliberate indifference to his safety. Watanabe does not allege that he has ever complained to prison officials about his safety in unit 5A. Thus, Watanabe has not alleged that any Defendant knows of the purported danger that he faces. See M.G. v. United States, 603 F. App'x 616, 617 (9th Cir. 2015) ("To plead deliberate indifference, [the plaintiff] must allege nonconclusory facts from which we can infer defendants . . . actually knew of the danger [the plaintiff] faced." (citations omitted)).

Watanabe's failure to protect claims in Count I are therefore DISMISSED without prejudice.

2. Denial Of Adequate Medical Care

[*17] Watanabe alleges in Count II that he was denied adequate medical care following the July 12, 2021 disturbance. ECF No. 8 at 9.

As already noted, "Carlson recognized an implied claim under the Eighth Amendment's cruel and unusual punishment clause for prison officials' failure to provide adequate medical care." Hoffman v. Preston, 26 F.4th 1059, 1064 (9th Cir. 2022) (citation omitted). "To establish a claim of inadequate medical care, a prisoner must first show a 'serious medical need' by demonstrating that failure to treat a prisoner's condition could result in further significant injury or the unnecessary and wanton infliction of pain." Edmo v. Corizon, Inc., 935 F.3d 757, 785 (9th Cir. 2019) (per curiam) (some internal quotation marks and citation omitted). "If . . . a prisoner establishes a sufficiently serious medical need, that prisoner must then show the official's response to the need was deliberately indifferent." Id. at 786 (internal quotation marks, brackets, and citation omitted). "To show deliberate indifference, the plaintiff must show that the course of treatment the official chose was medically unacceptable under the circumstances and that the official chose this course in conscious disregard of an excessive risk to the plaintiff's health." Id. (internal quotation marks, brackets, and citation omitted). "Deliberate indifference is a 'high legal standard' beyond malpractice or [*18] gross negligence." Balla v. Idaho, 29 F.4th 1019, 1025–26 (9th Cir. 2022) (citation omitted).

a. Nurse Nielsen

Watanabe alleges that he was "severely beaten" by four members of the Paisa's gang and "other Latino gang members" on July 12, 2021. ECF No. 8 at 7. During the attack, someone beat Watanabe with a "lock in a sock." Id. Later that evening, Watanabe was suffering from "severe pain and headaches," and he asked to be seen by medical staff. Id. Watanabe "discussed his medical condition" with Nurse Nielsen, but Nielsen told him "'to stop being a cry baby.'" Id. Nielsen also refused to send Watanabe to the hospital. Id.

Months later, Watanabe was diagnosed with a fractured coccyx and "bone chips in soft tissue around his tailbone." Id. These injuries caused Watanabe "severe pain." Id. As the Court has already concluded, see ECF No. 5 at 17–18, Watanabe's allegations plausibly state a denial of adequate medical care claim against Nielsen in his individual capacity that may proceed.

b. Dr. Kwon

Watanabe also alleges in Count II that Dr. Kwon denied him adequate medical care in the months after the July 12 disturbance. ECF No. 8 at 9.

According to Watanabe, "[f]rom July through January 2022, [Dr. Kwon] had an opportunity to properly diagnose [Watanabe's] injuries, but failed to do so." Id. [*19] Watanabe alleges that he submitted at least eleven informal complaints to Dr. Kwon. Id. at 8.

Watanabe does not say, however, when he submitted the informal complaints to Dr. Kwon or what he said in them. In addition, although Watanabe alleges that he "received no actual treatment," id. at 7, he acknowledges that he did receive over-the-counter pain medication. Id. Watanabe also admits that someone diagnosed his fractured coccyx and that Health Services agreed to send him to see a

specialist. Id. at 7, 9. It is unclear if Dr. Kwon played a role in providing this care. Thus, Watanabe has not plausibly alleged that Dr. Kwon consciously disregarded a serious medical need. See Lemire v. Cal. Dep't of Corr. & Rehab., 726 F.3d 1062, 1081–82 (9th Cir. 2013) ("The indifference to a prisoner's medical needs must be substantial. Mere 'indifference,' 'negligence,' or 'medical malpractice' will not support this claim." (quoting Broughton v. Cutter Labs., 622 F.2d 458, 460 (9th Cir. 1980)) (brackets and some internal quotation marks omitted). Watanabe's denial of adequate medical care claims against Dr. Kwon are therefore DISMISSED without prejudice.

↑ **IV. CONCLUSION**

(1) Watanabe states a denial of adequate medical care claim in Count II against Nielsen in his individual capacity that may proceed.

[*20] (2) Watanabe's failure to protect claims in Count I and his other denial of adequate medical care claim in Count II are DISMISSED without prejudice. Dismissal of these claims does not foreclose Watanabe from later filing an amended pleading, subject to the requirements of Federal Rule of Civil Procedure 15 and any applicable orders of this Court.

(3) The United States Marshal is ORDERED to serve the FAC, ECF No. 8, and a summons on Defendant Francis Nielsen, in addition to the United States, as directed by Watanabe, according to the requirements of Federal Rule of Civil Procedure 4(i). After service is perfected, Defendant Nielsen shall file a responsive pleading within the time allowed under Fed. R. Civ. P. 12.

↑ **V. SERVICE ORDER**

IT IS HEREBY ORDERED:

(1) For Defendant Francis Nielsen, the Clerk is directed to send to Plaintiff: one copy of the FAC, ECF No. 8; one completed summons; one USM-285 form; one Notice of Lawsuit and Request for Waiver of Service of Summons form (AO 398); two Waiver of Service of Summons forms (AO 399); and an instruction sheet.

(2) For the United States, see Fed. R. Civ. P. 4(i)(3), the Clerk is directed to send to Plaintiff two additional copies of the FAC, ECF No. 8; two completed summonses; and two USM-285 forms.

[*21] (3) The Clerk shall also send a copy of this Order to the U.S. Marshal at P.O. Box 50184, Honolulu, HI 96850.

(4) For Defendant Nielsen, Plaintiff shall complete the forms as directed and submit the following documents to the U.S. Marshal in Honolulu, Hawai'i: a completed USM-285 form; a copy of the FAC, ECF No. 8; the completed summons; a completed Notice of Lawsuit and Request for Waiver of Service of Summons form (AO 398); and two completed Waiver of Service of Summons forms (AO 399). For the United States, Plaintiff shall complete the forms as directed and submit to the U.S. Marshal: two completed USM-285 forms; two copies each of the FAC, ECF No. 8; and the two completed summonses.

(5) Upon receipt of these documents from Plaintiff, the U.S. Marshal shall mail to Defendant Nielsen: a copy of the FAC, ECF No. 8; a completed Notice of Lawsuit and Request for Waiver of Service form (AO 398); and two completed Waiver of Service of Summons forms (AO 399), as directed by Plaintiff without payment of costs. See Fed. R. Civ. P. 4(c)(3). The U.S. Marshal shall deliver a copy of the completed summons, the FAC, ECF No. 8, to the United States Attorney for the District of Hawaii and the Attorney General of the United States as directed by Plaintiff without payment of costs.

(6) For Defendant Nielsen, the U.S. Marshal shall retain the completed summons and a copy of the FAC, ECF No. 8. The U.S. Marshal shall file a [*22] returned Waiver of Service of Summons form as well as any Waiver of Service of Summons form that is returned as undeliverable, as soon as it is received.

(7) If Defendant Nielsen does not return a Waiver of Service of Summons form within sixty days from the date that such forms are mailed, the U.S. Marshal shall:

a. Personally serve such Defendant pursuant to Federal Rule of Civil Procedure 4 and 28 U.S.C. § 566(c).

b. Within ten days after personal service is effected, file the return of service for such Defendant, along with evidence of any attempts to secure a waiver of service of summons and of the costs subsequently incurred in effecting service. Said costs shall be enumerated on the USM-285 form and shall include the costs incurred

by the U.S. Marshal's office in photocopying additional copies of the summons, the FAC, and for preparing new USM-285 forms, if required. Costs of service will be taxed against the personally served Defendant in accordance with the provisions of Federal Rule of Civil Procedure 4(d)(2).

(8) Plaintiff is cautioned that if he fails to comply with this Order and his non-compliance prevents timely and proper service as set forth in Federal Rule of Civil Procedure 4(m), this action is subject to dismissal for failure to serve.

(9) Defendant Nielsen shall file a responsive pleading to the FAC, ECF No. 8, within the time set forth in Federal Rule of Civil Procedure 12.

[*23] (10) Plaintiff shall inform the Court of any change of address by filing a "NOTICE OF CHANGE OF ADDRESS." The notice shall contain only

information about the change of address and its effective date and shall not include requests for other relief. Failure to file such notice may result in the dismissal of the action for failure to prosecute under Fed. R. Civ. P. 41(b).

(11) After the FAC, ECF No. 8, is served and Defendant Nielsen has filed an answer or responsive pleading, Plaintiff's documents are deemed served when they are electronically filed by the court. The United States Marshal is not responsible for serving these documents on Plaintiff's behalf.

(12) Until the FAC, ECF No. 8, is served and Defendant Nielsen or his attorneys file a notice of appearance, Plaintiff SHALL NOT FILE MOTIONS OR OTHER DOCUMENTS with the Court.

IT IS SO ORDERED.

DATED: Honolulu, Hawai'i, August 2, 2022.

Jill A. Otake United States District Judge

Watanabe v. Derr, et al., Civil No. 22-00168 JAO-RT; ORDER DISMISSING FIRST AMENDED COMPLAINT IN PART AND DIRECTING SERVICE

↑ **Otake, J.** ECF No. 22 · Order · 2023-03-10

ORDER GRANTING DEFENDANT'S MOTION TO DISMISS FIRST AMENDED COMPLAINT re 20 - Signed by JUDGE JILL A. OTAKE on 3/10/2023.Because Watanabe's claim arises in a new context and at least one special factor weighs against recognizing a new Bivens remedy, Defendants' Motion, ECF No. 20, is GRANTED for failure to state a claim upon which relief can be granted. Because amendment would be futile, Watanabe's claim against Nielsen in the FAC is DISMISSED without leave to amend. See, e.g., Cervantes v. Countrywide Home Loans, Inc., 656 F.3d 1034, 1041 (9th Cir. 2011) (explaining that dismissal without leave to amend is proper when amendment would be futile). The Clerk of Court is DIRECTED to close the case and enter judgment in favor of Defendants.COURT'S CERTIFICATE OF SERVICE - Non-Registered CM/ECF Participants shall be served by First Class Mail to the addresses of record listed on the (NEF) on 3/10/2023. Pro Se (Non-Prisoner) Litigants that have consented to receive documents and Notices of Electronic Filings by email, have been served electronically at the e-mail address listed on the (NEF). (jni) (Entered: 03/10/2023)

IN THE UNITED STATES DISTRICT COURT

FOR THE DISTRICT OF HAWAII

KEKAI WATANABE, CIVIL NO. 22-00168 JAO-RT #94102-022, ORDER GRANTING DEFENDANT'S MOTION TO DISMISS FIRST Plaintiff, AMENDED COMPLAINT

vs.

ESTELA DERR, et al.,

Defendants.

ORDER GRANTING DEFENDANT'S MOTION TO DISMISS FIRST AMENDED COMPLAINT

Pro se Plaintiff Kekai Watanabe ("Watanabe") brought this suit pursuant to Bivens v. Six Unknown Named Agents of Federal Bureau of Narcotics, 403 U.S. 388 (1971), alleging that Defendant Francis Nielsen ("Nielsen"), a paramedic at the Federal Detention Center in Honolulu, Hawaii ("FDC Honolulu"), violated the Eighth Amendment's prohibition against cruel and unusual punishment by declining Watanabe's request to visit a hospital after he was injured during a gang riot.[1] See ECF No. 8 at 6–9. Nielsen filed a Motion to

Dismiss First Amended [*2] Complaint ("Motion") arguing, among other things, that Watanabe's claim is not cognizable under Bivens.[2] See ECF No. 20; ECF No. 20-1 at 10–23. The Court agrees that Watanabe cannot pursue his claim against Nielsen under Bivens and, for the reasons stated below, GRANTS the Motion.

↑ I. BACKGROUND

On July 12, 2021, Watanabe was severely beaten during a gang riot at FDC Honolulu with an improvised weapon, called a "lock in a sock." ECF No. 8 at 7. After order was restored, prison officials documented Watanabe's known and visible injuries, and they told Watanabe that he would be put on sick call. Id. Later the same night, Watanabe asked to be seen by medical staff. Id. Watanabe discussed his severe pain and headaches with two correctional officers who are not parties to this action. Id.

At some point, Watanabe also described his medical condition to Nielsen.[3] Id. Nielsen told Watanabe "to stop being a cry baby." Id. Nielsen also denied [*3] Watanabe's request to be taken to the hospital. Id. Watanabe does not describe any further interactions with Nielsen.

According to Watanabe, he remained in FDC Honolulu's special housing unit for two months after the riot. Id. During this period, Watanabe submitted numerous requests for medical attention. Id. Although prison officials provided Watanabe with over-the-counter pain medication, he received no "actual treatment." Id.

Sometime in February 2022, Watanabe was diagnosed with a fractured coccyx, with bone chips in the surrounding soft tissue. Id. at 7, 9. Prison officials then agreed to send Watanabe to a specialist. Id. at 9. As of July 2, 2022, Watanabe was still waiting to see a specialist. Id. at 6.

On July 7, 2022, the Court received the operative pleading in this suit—that is, the First Amended Complaint ("FAC"). Id. In the FAC, Watanabe alleges that [*4] Nielsen violated the Eighth Amendment's prohibition against cruel and unusual punishment by "denying him proper medical treatment that would have properly diagnosed and treated his injury." Id. at 9. Watanabe seeks three million dollars in damages. ECF No. 8 at 11.

Nielsen filed the Motion on January 13, 2023, arguing that the FAC should be dismissed because Watanabe's constitutional tort claim presents a new context, which is not cognizable under the Supreme Court's current Bivens framework. See ECF No. 20 at 2; see also ECF No. 20-1 at 10–23. Watanabe filed neither an opposition to the Motion nor a statement setting forth his position on the Motion. See LR7.2. The Court will decide the Motion without a hearing pursuant to Local Rule 7.1(d). See ECF No. 21.

↑ II. STANDARD OF REVIEW

Federal Rule of Civil Procedure 12(b)(6) authorizes dismissal of a complaint that fails "to state a claim upon which relief can be granted." Fed. R. Civ. P. 12(b)(6). On a Rule 12(b)(6) motion to dismiss, "the court accepts the facts alleged in the complaint as true," and "[d]ismissal can be based on the lack of a cognizable legal theory or the absence of sufficient facts alleged." UMG Recordings, Inc. v. Shelter Capital Partners LLC, 718 F.3d 1006, 1014 (9th Cir. 2013) (quoting Balistreri v. Pacifica Police Dep't, 901 F.2d 696, 699 (9th Cir. 1988)) (alteration in original). Conclusory allegations of law, unwarranted [*5] deductions of fact, and unreasonable inferences are insufficient to defeat a motion to dismiss. See Sprewell, 266 F.3d at 988; Nat'l Ass'n for the Advancement of Psychoanalysis v. Cal. Bd. of Psychology, 228 F.3d 1043, 1049 (9th Cir.

[1]Watanabe also asserted claims against the warden, a unit manager, and a doctor at FDC Honolulu, but those claims were previously dismissed by the Court. See ECF No. 9 at 11–16, 18–19.

[2]Even assuming that Watanabe's claims were cognizable, Nielsen argues that qualified immunity shields him from personal liability. See ECF No. 20; ECF No. 20-1 at 23–28. Because no Bivens remedy is available to Watanabe, the Court does not reach Nielsen's qualified immunity argument. See Pettibone v. Russell, 59 F.4th 449, 457 (9th Cir. 2023) ("Because [plaintiff] has no cause of action under Bivens, we need not consider whether [defendant] would be entitled to qualified immunity.").

[3]Citing Watanabe's medical records, Nielsen asserts that this meeting took place on July 16, 2021—that is, four days after the riot. See ECF No. 20-1 at 8; ECF No. 20-3 at 5. Under Federal Rule of Civil Procedure 12(b)(6), however, this Court's review is generally limited to the contents of the complaint. See Sprewell v. Golden State Warriors, 266 F.3d 979, 988 (9th Cir. 2001). Although "[a] court may . . . consider certain materials—documents attached to the complaint, documents incorporated by reference in the complaint, or matters of judicial notice—without converting the motion to dismiss into a motion for summary judgment," United States v. Ritchie, 342 F.3d 903, 908 (9th Cir. 2003), Watanabe did not attach his medical records to the First Amended Complaint, he does not refer to them in that pleading, and the Court is currently unable to take judicial notice of those documents. See Dillingham v. Garcia, No. 1:19-cv-00461-AWI-GSA-PC, 2019 WL 2577196, at *2 (E.D. Cal. June 24, 2019) ("The court shall not take judicial notice of prison medical records absent a showing that the medical records were matters of public record.").

2000) (citation omitted). Furthermore, the court need not accept as true allegations that contradict matters properly subject to judicial notice. See Sprewell, 266 F.3d at 988.

"To survive a motion to dismiss, a complaint must contain sufficient factual matter, accepted as true, to 'state a claim to relief that is plausible on its face.'" Ashcroft v. Iqbal, 556 U.S. 662, 678 (2009) (quoting Bell Atl. Corp. v. Twombly, 550 U.S. 544, 570 (2007)). Facial plausibility exists "when the plaintiff pleads factual content that allows the court to draw the reasonable inference that the defendant is liable for the misconduct alleged." Id. (citing Twombly, 550 U.S. at 556). "Threadbare recitals of the elements of a cause of action, supported by mere conclusory statements, do not suffice." Id. (citing Twombly, 550 U.S. at 555). "[W]here the well-pleaded facts do not permit the court to infer more than the mere possibility of misconduct, the complaint has alleged—but it has not 'show[n]'— 'that the pleader is entitled to relief.'" Id. at 679 (quoting Fed. R. Civ. P. 8(a)(2)) (some alterations in original).

Watanabe is appearing pro se; thus, the Court liberally construes his pleadings. See Erickson v. Pardus, 551 U.S. 89, 94 (2007) (per curiam); Eldridge [*6] v. Block, 832 F.2d 1132, 1137 (9th Cir. 1987). The Court also recognizes that "[u]nless it is absolutely clear that no amendment can cure the defect . . . a pro se litigant is entitled to notice of the complaint's deficiencies and an opportunity to amend prior to dismissal of the action." Lucas v. Dep't of Corr., 66 F.3d 245, 248 (9th Cir. 1995); see also Rowley v. Bannister, 734 F.3d 967, 977–78 (9th Cir. 2013).

↑ **III. ANALYSIS**

Watanabe brought this suit pursuant to Bivens alleging that Nielsen violated the Eighth Amendment's prohibition against cruel and unusual punishment by "denying him proper medical treatment that would have properly diagnosed and treated his injury." See ECF No. 8 at 9. Before the merits of this claim can be reached, the Court must first decide whether a Bivens remedy is available to Watanabe. See, e.g., Manansingh v. United States, Case No. 2:20-cv-01139- DWM, 2021 WL 2080190, at *8 (D. Nev. May 24, 2021) ("In a constitutional action against a federal officer, a threshold consideration is whether a plaintiff may bring a Bivens suit in the first place."). Because no such remedy exists, the FAC and this action must be dismissed.

A. Legal Framework for Determining Whether a Bivens Remedy Exists

While "Congress has made a cause of action available to any person who has suffered 'the deprivation of any rights, privileges, or immunities secured by the [*7] Constitution and laws' at the hands of someone acting under color of state law," it "has not created a general cause of action to redress violations of the Constitution by federal officers." Pettibone, 59 F.4th at 454 (quoting 42 U.S.C. § 1983).

In three cases decided between 1971 and 1980, however, "the Supreme Court held that the Constitution contains an implied cause of action through which plaintiffs can seek damages from federal officers who violate their constitutional rights." Id. In Bivens, the Court held that a plaintiff could seek damages from Federal Bureau of Narcotics agents who allegedly violated the Fourth Amendment right to be free from unreasonable searches and seizures. 403 U.S. at 397. The Court extended the Bivens remedy in Davis v. Passman, where a plaintiff alleged that her employer, a Member of Congress, had discriminated against her because of her sex, in violation of the Due Process Clause of the Fifth Amendment. 442 U.S. 228, 230–31 (1979). Finally, in Carlson v. Green, the Court held that the estate of a deceased inmate could seek damages from federal prison officials who allegedly violated the inmate's Eighth Amendment right to be free from cruel and unusual punishment by failing to treat severe asthma that ultimately resulted in the prisoner's death. 446 U.S. 14, 16–18 (1980). "These three cases—Bivens, Davis, and Carlson—represent the only instances in which the Court has approved of an implied damages remedy under the Constitution itself." Ziglar v. Abbasi, 582 U.S. 120, 132 (2017).

[*8] The Supreme Court "has made clear that expanding the Bivens remedy is now a 'disfavored' judicial activity." Abbasi, 582 U.S. at 135 (citation omitted); Egbert v. Boule, 142 S. Ct. 1793, 1802 (2022) ("At bottom, creating a cause of action is a legislative endeavor."). Indeed, the Supreme Court has indicated that "if [the Court] were called to decide Bivens today, [it] would decline to discover any implied causes of action in the Constitution." Id. at 1809. Since 1980, therefore, the Supreme Court "has 'consistently refused to extend Bivens to any new context or new category of defendants.'"[4] Abbasi, 582 U.S. at 135 (citation

omitted).

[*9] Now, when asked to imply a Bivens remedy, courts must use "caution." Egbert, 142 S. Ct. at 1803. If there is even a "single sound reason" to think that Congress might doubt the efficacy or necessity of a damages remedy, courts must refrain from creating it. Id. Thus, "'the most important question is who should decide whether to provide for a damages remedy, Congress or the courts?'" Id. (citation omitted). In "most every case," the answer will be Congress. Id.

In deciding whether a Bivens remedy is available in a particular case, courts apply a two-step framework. Pettibone, 59 F.4th at 454. At step one, courts "ask whether the case presents 'a new Bivens context.'" Egbert, 142 S. Ct. at 1803. If the answer to this question is "no," then no further analysis is required, and the claim may proceed. See Lanuza v. Love, 899 F.3d 1019, 1023 (9th Cir. 2018). If the answer is "yes," then the court proceeds to step two. At step two, "a Bivens remedy is unavailable if there are 'special factors' indicating that the Judiciary is at least arguably less equipped than Congress to 'weigh the costs and benefits of allowing a damages action to proceed.'"[5] Pettibone, 59 F.4th at 454 (citation omitted).

B. Watanabe's Claim Against Nielsen Presents a New Context

[*10] The Supreme Court's "understanding of a 'new context' is broad." Hernandez, 140 S. Ct. at 743. A case presents a new context if it is "different in a meaningful way from previous Bivens cases decided by [the Supreme Court]." Abbasi, 582 U.S. at 139. The Supreme Court has provided a non-exhaustive list of differences that may be "meaningful" including the rank of the officers involved, the constitutional right at issue, the generality or specificity of the official action, the extent of judicial guidance as to how an officer should respond to the problem or emergency to be confronted, the statutory or other legal mandate under which the officer was operating, the risk of disruptive intrusion by the Judiciary into the functioning of other branches of government, and the presence of potential special factors that previous Bivens cases did not consider. Id. at 139–40.

The Supreme Court has stated that "[a] claim may arise in a new context even if it is based on the same constitutional provision as a claim in a case in which a damages remedy was previously recognized." Hernandez, 140 S. Ct. at 743. Thus, even where a "case has significant parallels to one of the [Supreme Court's] previous Bivens cases, it can present a new context. Abbasi, 582 U.S. at 147. In

> Mejia v. Miller, No. 21-56282, 2023 WL 2350630, at *4 (9th Cir. Mar. 2, 2023); see also Pettibone, 59 F.4th at 454 ("Before affording a plaintiff a cause of action under Bivens, a court must go through two steps[.]").

The Court therefore applies the two-step framework, as clarified in Egbert, to analyze Watanabe's claim.

[*11] other words, "even a modest extension is an extension." Id.; see Mejia, 2023 WL 2350630, at *5 ("[R]arely if ever is the Judiciary equally suited as Congress to extend Bivens even modestly.").

The Supreme Court's analysis in Egbert illustrates these principles. In Egbert, a bed-and-breakfast operator and Border Patrol confidential informant alleged, among other things, that a Border Patrol agent used excessive force on him while trying to conduct a search on the plaintiff's property. 142 S. Ct. at 1801. While noting that Egbert and Bivens involved "similar allegations of excessive force and thus arguably present[ed] 'almost parallel circumstances' or a similar 'mechanism of injury,'" the Supreme

[4]The Supreme Court has declined to create a Bivens remedy in the following cases: a First Amendment suit against a federal employer, see Bush v. Lucas, 462 U.S. 367 (1983); a race discrimination suit against military officers, see Chappell v. Wallace, 462 U.S. 296 (1983); a substantive due process suit against military officers, see United States v. Stanley, 483 U.S. 669 (1987); a procedural due process suit against Social Security officials, see Schweiker v. Chilicky, 487 U.S. 412 (1988); a procedural due process suit against a federal agency for wrongful termination, see FDIC v. Meyer, 510 U.S. 471 (1994); an Eighth Amendment suit against a private halfway house operator under contract with the BOP, see Corr. Servs. Corp. v. Malesko, 534 U.S. 61 (2001); a claim of retaliation by Bureau of Land Management officials against plaintiff for his exercise of Fifth Amendment property rights, see Wilkie v. Robbins, 551 U.S. 537 (2007); a suit under the Fifth, Eighth, and Fourteenth Amendments against United States Public Health Service personnel, see Hui v. Castaneda, 559 U.S. 799 (2010); an Eighth Amendment suit against prison guards at a private prison, see Minneci v. Pollard, 565 U.S. 118 (2012); a Fifth Amendment suit against Department of Justice officials, see Abbasi, 582 U.S. at 155; a Fourth and Fifth Amendment suit against a United States Border Patrol agent, Hernandez v. Mesa, 140 S. Ct. 735 (2020); and a First and Fourth Amendment suit against a United States Border Patrol Agent, see Egbert, 142 S. Ct. at 1793.

[5]In Egbert, the Supreme Court noted that these two steps "often resolve to a single question: whether there is any reason to think that Congress might be better equipped to create a damages remedy." 142 S. Ct. at 1803. At least one court of appeals has suggested in dicta that this sentence "appear[s] to alter the existing two-step Bivens framework." Silva v. United States, 45 F.4th 1134, 1139 (10th Cir. 2022). The Ninth Circuit, however, has stated that Egbert only "reiterate[d] the longstanding first step of the Bivens question" and "clarified" the second step.

Court stated that these "superficial similarities [were] not enough to support the judicial creation of a cause of action." Id. at 1805.

Here, although Watanabe's claim has some parallels to the claims in Carlson, the specifics of Watanabe's allegations are dissimilar in both their "nature and severity" from the facts in Carlson. Martinez v. United States Bureau of Prisons, Case No. 5:15-cv-02160-TJH (AFM), 2019 WL 5432052, at *9 (C.D. Cal. Aug. 20, 2019), report and recommendation adopted, 2019 WL 5424414 (C.D. Cal. Oct. 22, 2019), aff'd, 830 F. App'x 234 (9th Cir. 2020).

In Carlson, an inmate was diagnosed as a "chronic asthmatic" when he entered the federal prison system. Green v. Carlson, 581 F.2d 669, 671 (7th Cir. [*12] 1978), aff'd, 446 U.S. 14 (1980). The inmate was later hospitalized for eight days because of symptoms associated with this condition, and the treating physician recommended that the inmate be transferred to a different facility. Id. Despite the doctor's recommendation, the inmate remained in the same facility. Id. Then, when the inmate was admitted to the prison hospital with an asthmatic attack, he was not seen by a doctor for eight hours. Id. As the inmate's breathing became more difficult, a non-licensed nurse in charge of the prison hospital deserted the inmate to distribute medication elsewhere. Id. When the nurse returned, he attempted to use a respirator on the inmate. Id. The nurse did this despite being told two weeks earlier that the respirator was broken. Id. When the inmate told the nurse that the respirator was making his breathing worse, the nurse administered two doses of a drug contraindicated for someone suffering an asthmatic attack. Id. A half-hour after the second injection, the inmate suffered a respiratory arrest. Id. The nurse and another prison official then brought emergency equipment to administer an electric jolt to the inmate, but neither man knew how to operate machine. Id. Only at that point was the inmate taken to a hospital, where he was pronounced dead. Id.

Watanabe's claim against Nielsen differs from the claims in Carlson in several important ways. First, the nature of Watanabe's claim differs from those in Carlson because it does not relate to a course of medical treatment provided to him [*13] at FDC Honolulu. Instead, Watanabe alleges that, sometime after the riot ended, Nielsen interfered with the proper diagnosis and treatment of his injuries by denying his request to be taken to the hospital. ECF No. 8 at 9. Although it is well settled that state prisoners can establish deliberate indifference in the context of an Eighth Amendment claim by showing that officials "intentionally interfered with . . . medical treatment," Lopez v. Smith, 203 F.3d 1122, 1132 (9th Cir. 2000), that was not the basis for the claims in Carlson. Again, the claims in Carlson were largely based on treatment provided to a federal inmate during a medical emergency. Thus, Watanabe seeks an extension of Bivens to an area not addressed in Carlson. See Donaldson v. Garland, No. 2:21-cv-1178 TLN KJN P, 2022 WL 10189084, at *3 (E.D. Cal. Oct. 17, 2022) (finding new context where plaintiff alleged that prison officials interfered with medical care by cancelling surgery), report and recommendation adopted, 2022 WL 17722326 (E.D. Cal. Dec. 15, 2022).

Second, the severity of Watanabe's claim does not compare to the seriousness of the claims in Carlson. While the pain that Watanabe experienced because of his fractured coccyx and bone chips is certainly regrettable, it is not akin to the medical emergency faced by the inmate in Carlson that ultimately resulted in that inmate's death. See Washington v. Fed. Bureau of Prisons, Civil Action No. 5:16-3913-BHH, 2022 WL 3701577, at *5 (D.S.C. Aug. 26, 2022) [*14] (noting that "[p]laintiff's Bivens claims do not involve a medical emergency, as did Carlson, but rather focus on a long term and ongoing course of medical treatment of Plaintiff's chronic, non-fatal condition" in concluding that case presented a new context); Peguero v. Quay, No. 1:22-CV-00057, 2023 WL 2410882, at *11 (M.D. Pa. Mar. 8, 2023) (concluding that chronic pain caused by two herniated discs, scoliosis, and nerve damage was a new context because it did not involve a "medical life-threatening emergency").

These differences in the "nature and severity" of Watanabe's claims compared to those in Carlson are meaningful. See Martinez, 2019 WL 5432052, at *9; see also Prescott v. United States, Case No. 2:20-cv-2740-SB (SK), 2022 WL 18859316, at *2 (C.D. Cal. Dec. 21, 2022) (concluding that assigning a federal prisoner to an inhospitable bed and refusing to move him even after a doctor's order presented a new context), report and recommendation adopted, 2023 WL 2188692 (C.D. Cal. Feb. 22, 2023); Davis v. Fed. Bureau of Prisons, Case No. 5:21-cv-1475-CAS (SK), 2022 WL 18460704, at *2 (C.D. Cal. Dec. 8, 2022), report and recommendation adopted, 2023 WL 405319 (C.D. Cal. Jan. 24, 2023) (concluding

that federal prisoner's claim that defendant performed an unauthorized surgical procedure presented a new context). Indeed, allowing Watanabe's claims to proceed risks "transforming [the court] into an ad hoc medical review board tasked with deciding, with little to no judicial guidance, which medical errors, if [*15] any, cross the threshold into constitutional injury."[6] Washington, 2022 WL 3701577, at *5.

Furthermore, the Supreme Court has stated that "the presence of potential special factors that previous Bivens cases did not consider" is a relevant consideration in deciding whether a case presents a new context. See Abbasi, 582 U.S. at 140; see also Egbert, 142 S. Ct. 1793 ("[W]e have explained that a new context arises when there are 'potential special factors that previous Bivens cases did not consider.") (citation omitted). As explained in the following section, special factors weigh against recognizing a Bivens remedy for Watanabe's claim, including the existence of the Federal Bureau of Prisons' administrative remedy program. Because this factor was not considered by the Court in Carlson, this is [*16] another reason that Watanabe's claim arises in a new context. See Hoffman v. Preston, No. 20-15396, 2022 WL 6685254, at *1 (9th Cir. Oct. 11, 2022) (unpublished) ("Congress has not authorized a damages remedy in this context, and there are 'rational reason[s],' why it might not, for example, the existence of the Bureau of Prisons' formal review process for inmate complaints.") (citation omitted and brackets in original).

For all these reasons, Watanabe's claim is meaningfully different from the claims in Carlson, and the court must proceed to step two.

C. Special Factors Counsel Against Recognizing a Bivens Remedy

"[I]f a claim arises in a new context, a Bivens remedy is unavailable if there are 'special factors' indicating that the Judiciary is at least arguably less equipped than Congress to 'weigh the costs and benefits of allowing a damages action to proceed.'" Egbert, 142 S. Ct. at 1803 (citation omitted). Thus, at step two, "[a] court faces only one question: whether there is any rational reason (even one) to think that Congress is better suited to 'weigh the costs and benefits of allowing a damages action to proceed.'" Id. at 1805 (citation omitted). "If there is even a single 'reason to pause before applying Bivens in a new context,' a court may not recognize a Bivens remedy." Id. (citation omitted). In conducting this analysis, courts must ask "'broadly' if there is any reason to think that 'judicial intrusion' into a given field might be 'harmful' or 'inappropriate.' Id. (citation omitted). If [*17] there is such a reason "or even if there is the 'potential' for such consequences, a court cannot afford a plaintiff a Bivens remedy." Id. at 1805–06 (citation omitted). This will be the outcome in "most every case." Id. at 1803.

For example, "[i]f there are alternative remedial structures in place, 'that alone,' like any special factor, is reason enough to 'limit the power of the Judiciary to infer a new Bivens cause of action.'" Id. at 1804. It does not matter whether a Bivens remedy would disrupt the remedial scheme, nor does it matter whether the court should provide a remedy for a wrong that would otherwise go unaddressed. Id. Likewise, "it does not matter that 'existing remedies do not provide complete relief.'" Id. (citation omitted). "So long as Congress or the Executive has created a remedial process that it finds sufficient to secure an adequate level of deterrence, the courts cannot second-guess that calibration by superimposing a Bivens remedy." Id. at 1807.

Here, the Court cannot recognize a Bivens remedy because alternative remedies are available to Watanabe. First, the Executive, through the Federal Bureau of Prisons, has an alternative remedial program for federal prisoners like Watanabe. See 28 C.F.R. § 542.10 ("The purpose of the Administrative Remedy Program is to allow an inmate to seek formal review of an issue relating to any aspect of his/her own confinement."); see also Malesko, 534 U.S. at 74 (concluding that Bivens remedy was unavailable,

[6] A few courts have allowed to proceed claims involving "medical treatment." See, e.g., Ibuado v. Fed. Prison Atwater, 2023 WL 2312395, at *4 (E.D. Cal. Mar. 1, 2023) (claims based on side effects of medication); Dinkins v. United States, 2022 WL 16735362, at *6 (C.D. Cal. Aug. 19, 2022) (claims based on failure to treat sinus blockage), report and recommendation adopted, 2022 WL 15525746 (C.D. Cal. Oct. 27, 2022). These decisions are not instructive here, where Watanabe's claim is based on interference with medical care, not a course of medical treatment. Moreover, the Court does not find the analyses in these decisions persuasive. Neither decision addresses the Supreme Court's statement that "similar allegations," "'almost parallel circumstances,'" or a "similar 'mechanism of injury'" are only "superficial similarities," and they are "not enough to support the judicial creation of a cause of action." 142 S. Ct. at 1805. Nor do these decisions address the Supreme Court's warning that "a plaintiff cannot justify a Bivens extension based on 'parallel circumstances with . . . Carlson unless he also satisfies the 'analytic framework' prescribed by the last four decades of intervening case law." Id. at 1809.

> in part, because "[i]nmates . . . [*18] have full access to remedial mechanisms established by the BOP, including . . . grievances filed through the BOP's Administrative Remedy Program"); Taylor v. Kobayashi, No. 22-16017, 2023 WL 2400879, at *1 (9th Cir. Mar. 8, 2023) (unpublished) (concluding that "the Bureau of Prisons' formal review process for inmate complaints" foreclosed the availability of a Bivens remedy). Second, Congress has provided an alternative remedy through the Federal Tort Claims Act ("FTCA"). See Schwarz v. Meinberg, 761 F. App'x 732, 734–35 (9th Cir. 2019) (identifying the FTCA as an alternative process available to federal prisoners); Prescott, 2022 WL 18859316, at *2 ("[A]ggrieved federal prisoners can bring suit for damages against the United States for the torts of its federal employees under the [FTCA]."); Donaldson, 2022 WL 10189084, at *3 ("[P]laintiff has alternative remedies available to him, including the Bureau of Prisons administrative grievance process and a federal tort claims action."). While a single alternative remedy is sufficient to foreclose a Bivens remedy, at least two are available to Watanabe. Thus, the Court cannot "second-guess" the judgments made by Congress and the Executive "by superimposing a Bivens remedy." Egbert, 142 S. Ct. at 1807. As the Supreme Court has stated, "in all but the most unusual circumstances, prescribing a cause of action is a job for Congress, not the courts." Egbert, 142 S. [*19] Ct. at 1800. This case does not present the unusual circumstances required to recognize a Bivens remedy.

↑ **IV. CONCLUSION**

Because Watanabe's claim arises in a new context and at least one special factor weighs against recognizing a new Bivens remedy, Defendants' Motion, ECF No. 20, is GRANTED for failure to state a claim upon which relief can be granted. Because amendment would be futile, Watanabe's claim against Nielsen in the FAC is DISMISSED without leave to amend. See, e.g., Cervantes v. Countrywide Home Loans, Inc., 656 F.3d 1034, 1041 (9th Cir. 2011) (explaining that dismissal without leave to amend is proper when amendment would be futile). The Clerk of Court is DIRECTED to close the case and enter judgment in favor of Defendants.

IT IS SO ORDERED.

DATED: Honolulu, Hawai'i, March 10, 2023.

CIVIL NO. 22-00168 JAO-RT; Watanabe v. Derr; Order Granting MTD FAC

↑ The Law Cited

Not part of the filing. Every statute, constitutional provision and regulation the documents cite, with its text where it is stored locally: today's text, not the law as of 2022; a cite of one in the text links here.

U.S. Const. amend. VIII

Amendment VIII (H. Doc. 110-50)

Excessive bail shall not be required, nor excessive fines imposed, nor cruel and unusual punishments inflicted.

18 U.S.C. § 922

Unlawful acts

(a) It shall be unlawful—

(1) for any person—

(A) except a licensed importer, licensed manufacturer, or licensed dealer, to engage in the business of importing, manufacturing, or dealing in firearms, or in the course of such business to ship, transport, or receive any firearm in interstate or foreign commerce; or

(B) except a licensed importer or licensed manufacturer, to engage in the business of importing or manufacturing ammunition, or in the course of such business, to ship, transport, or receive any ammunition in interstate or foreign commerce;

(2) for any importer, manufacturer, dealer, or collector licensed under the provisions of this chapter to ship or transport in interstate or foreign commerce any firearm to any person other than a licensed importer, licensed manufacturer, licensed dealer, or licensed collector, except that—

(A) this paragraph and subsection (b)(3) shall not be held to preclude a licensed importer, licensed manufacturer, licensed dealer, or licensed collector from returning a firearm or replacement firearm of the same kind and type to a person from whom it was received; and this paragraph shall not be held to preclude an individual from mailing a firearm owned in compliance with Federal, State, and local law to a licensed importer, licensed manufacturer, licensed dealer, or licensed collector;

(B) this paragraph shall not be held to preclude a licensed importer, licensed manufacturer, or licensed dealer from depositing a firearm for conveyance in the mails to any officer, employee, agent, or watchman who, pursuant to the provisions of section 1715 of this title, is eligible to receive through the mails pistols, revolvers, and other firearms capable of being concealed on the person, for use in connection with his official duty; and

(C) nothing in this paragraph shall be construed as applying in any manner in the District of Columbia, the Commonwealth of Puerto Rico, or any possession of the United States differently than it would apply if the District of Columbia, the Commonwealth of Puerto Rico, or the possession were in fact a State of the United States;

(3) for any person, other than a licensed importer, licensed manufacturer, licensed dealer, or licensed collector to transport into or receive in the State where he resides (or if the person is a corporation or other business entity, the State where it maintains a place of business) any firearm purchased or otherwise obtained by such person outside that State, except that this paragraph (A) shall not preclude any person who lawfully acquires a firearm by bequest or intestate succession in a State other than his State of residence from transporting the firearm into or receiving it in that State, if it is lawful for such person to purchase or possess such firearm in that State, (B) shall not apply to the transportation or receipt of a firearm obtained in conformity with subsection (b)(3) of this section, and (C) shall not apply to the transportation of any firearm acquired in any State prior to the effective date of this chapter;

(4) for any person, other than a licensed importer, licensed manufacturer, licensed dealer, or licensed collector, to transport in interstate or foreign commerce any destructive device, machinegun (as defined in section 5845 of the Internal Revenue Code of 1986), short-barreled shotgun, or short-barreled rifle, except as specifically authorized by the Attorney General consistent with public safety and necessity;

(5) for any person (other than a licensed importer, licensed manufacturer, licensed dealer, or licensed collector) to transfer, sell, trade, give, transport, or deliver any firearm to any person (other than a licensed importer, licensed manufacturer, licensed dealer, or licensed collector) who the transferor knows or has reasonable cause to believe does not reside in (or if the person is a corporation or other business entity, does not maintain a place of business in) the State in which the transferor resides; except that this paragraph shall not apply to (A) the transfer, transportation, or delivery of a firearm made to carry out a bequest of a firearm to, or an acquisition by intestate succession of a firearm by, a person who is permitted to acquire or possess a firearm under the laws of the State of his residence, and (B) the loan or rental of a firearm to any person for temporary use for lawful sporting purposes;

(6) for any person in connection with the acquisition or attempted acquisition of any firearm or ammunition from a licensed importer, licensed manufacturer, licensed dealer, or licensed collector, knowingly to make any false or fictitious oral or written statement or to furnish or exhibit any false, fictitious, or misrepresented identification, intended or likely to deceive such importer, manufacturer, dealer, or collector with respect to any fact material to the

lawfulness of the sale or other disposition of such firearm or ammunition under the provisions of this chapter;

(7) for any person to manufacture or import armor piercing ammunition, unless—

(A) the manufacture of such ammunition is for the use of the United States, any department or agency of the United States, any State, or any department, agency, or political subdivision of a State;

(B) the manufacture of such ammunition is for the purpose of exportation; or

(C) the manufacture or importation of such ammunition is for the purpose of testing or experimentation and has been authorized by the Attorney General;

(8) for any manufacturer or importer to sell or deliver armor piercing ammunition, unless such sale or delivery—

(A) is for the use of the United States, any department or agency of the United States, any State, or any department, agency, or political subdivision of a State;

(B) is for the purpose of exportation; or

(C) is for the purpose of testing or experimentation and has been authorized by the Attorney General;

(9) for any person, other than a licensed importer, licensed manufacturer, licensed dealer, or licensed collector, who does not reside in any State to receive any firearms unless such receipt is for lawful sporting purposes.

(b) It shall be unlawful for any licensed importer, licensed manufacturer, licensed dealer, or licensed collector to sell or deliver—

(1) any firearm or ammunition to any individual who the licensee knows or has reasonable cause to believe is less than eighteen years of age, and, if the firearm, or ammunition is other than a shotgun or rifle, or ammunition for a shotgun or rifle, to any individual who the licensee knows or has reasonable cause to believe is less than twenty-one years of age;

(2) any firearm to any person in any State where the purchase or possession by such person of such firearm would be in violation of any State law or any published ordinance applicable at the place of sale, delivery or other disposition, unless the licensee knows or has reasonable cause to believe that the purchase or possession would not be in violation of such State law or such published ordinance;

(3) any firearm to any person who the licensee knows or has reasonable cause to believe does not reside in (or if the person is a corporation or other business entity, does not maintain a place of business in) the State in which the licensee's place of business is located, except that this paragraph (A) shall not apply to the sale or delivery of any rifle or shotgun to a resident of a State other than a State in which the licensee's place of business is located if the transferee meets in person with the transferor to accomplish the transfer, and the sale, delivery, and receipt fully comply with the legal conditions of sale in both such States (and any licensed manufacturer, importer or dealer shall be presumed, for purposes of this subparagraph, in the absence of evidence to the contrary, to have had actual knowledge of the State laws and published ordinances of both States), and (B) shall not apply to the loan or rental of a firearm to any person for temporary use for lawful sporting purposes;

(4) to any person any destructive device, machinegun (as defined in section 5845 of the Internal Revenue Code of 1986), short-barreled shotgun, or short-barreled rifle, except as specifically authorized by the Attorney General consistent with public safety and necessity; and

(5) any firearm or armor-piercing ammunition to any person unless the licensee notes in his records, required to be kept pursuant to section 923 of this chapter, the name, age, and place of residence of such person if the person is an individual, or the identity and principal and local places of business of such person if the person is a corporation or other business entity.

Paragraphs (1), (2), (3), and (4) of this subsection shall not apply to transactions between licensed importers, licensed manufacturers, licensed dealers, and licensed collectors. Paragraph (4) of this subsection shall not apply to a sale or delivery to any research organization designated by the Attorney General.

(c) In any case not otherwise prohibited by this chapter, a licensed importer, licensed manufacturer, or licensed dealer may sell a firearm to a person who does not appear in person at the licensee's business premises (other than another licensed importer, manufacturer, or dealer) only if—

(1) the transferee submits to the transferor a sworn statement in the following form:

"Subject to penalties provided by law, I swear that, in the case of any firearm other than a shotgun or a rifle, I am twenty-one years or more of age, or that, in the case of a shotgun or a rifle, I am eighteen years or more of age; that I am not prohibited by the provisions of chapter 44 of title 18, United States Code, from receiving a firearm in interstate or foreign commerce; and that my receipt of this firearm will not be in violation of any statute of the State and published ordinance applicable to the locality in which I reside. Further, the true title, name, and address of the principal law enforcement officer of the locality to which the firearm will be delivered are _____

_____

(2) the transferor has—

(A) prior to the shipment or delivery of the firearm, forwarded a copy of the sworn statement, together with a description of the firearm, in a form prescribed by the Attorney General, to the chief law enforcement officer of the

transferee's place of residence, by—

(i) registered or certified mail (return receipt requested); or

(ii) verified electronic notification; and

(B)

(i) with respect to a delivery method described in subparagraph (A)(i)—

(I) received a return receipt evidencing delivery of the statement; or

(II) had the statement returned due to the refusal of the named addressee to accept such letter in accordance with United States Post Office Department regulations; or

(ii) with respect to a delivery method described in subparagraph (A)(ii), received a return receipt evidencing delivery of the statement; and

(3) the transferor has delayed shipment or delivery for a period of at least seven days following receipt of the notification of the acceptance or refusal of delivery of the statement.

A copy of the sworn statement and a copy of the notification to the local law enforcement officer, together with evidence of receipt or rejection of that notification shall be retained by the licensee as a part of the records required to be kept under section 923(g).

(d) It shall be unlawful for any person to sell or otherwise dispose of any firearm or ammunition to any person knowing or having reasonable cause to believe that such person, including as a juvenile—

(1) is under indictment for, or has been convicted in any court of, a crime punishable by imprisonment for a term exceeding one year;

(2) is a fugitive from justice;

(3) is an unlawful user of or addicted to any controlled substance (as defined in section 102 of the Controlled Substances Act (21 U.S.C. 802));

(4) has been adjudicated as a mental defective or has been committed to any mental institution at 16 years of age or older;

(5) who, being an alien—

(A) is illegally or unlawfully in the United States; or

(B) except as provided in subsection (y)(2), has been admitted to the United States under a nonimmigrant visa (as that term is defined in section 101(a)(26) of the Immigration and Nationality Act (8 U.S.C. 1101(a)(26)));

(6) who has been discharged from the Armed Forces under dishonorable conditions;

(7) who, having been a citizen of the United States, has renounced his citizenship;

(8) is subject to a court order that restrains such person from harassing, stalking, or threatening an intimate partner of such person or child of such intimate partner or person, or engaging in other conduct that would place an intimate partner in reasonable fear of bodily injury to the partner or child, except that this paragraph shall only apply to a court order that—

(A) was issued after a hearing of which such person received actual notice, and at which such person had the opportunity to participate; and

(B)

(i) includes a finding that such person represents a credible threat to the physical safety of such intimate partner or child; or

(ii) by its terms explicitly prohibits the use, attempted use, or threatened use of physical force against such intimate partner or child that would reasonably be expected to cause bodily injury;

(9) has been convicted in any court of a misdemeanor crime of domestic violence;

(10) intends to sell or otherwise dispose of the firearm or ammunition in furtherance of a felony, a Federal crime of terrorism, or a drug trafficking offense (as such terms are defined in section 932(a)); or

(11) intends to sell or otherwise dispose of the firearm or ammunition to a person described in any of paragraphs (1) through (10).

This subsection shall not apply with respect to the sale or disposition of a firearm or ammunition to a licensed importer, licensed manufacturer, licensed dealer, or licensed collector who pursuant to subsection (b) of section 925 is not precluded from dealing in firearms or ammunition, or to a person who has been granted relief from disabilities pursuant to subsection (c) of section 925.

(e) It shall be unlawful for any person knowingly to deliver or cause to be delivered to any common or contract carrier for transportation or shipment in interstate or foreign commerce, to persons other than licensed importers, licensed manufacturers, licensed dealers, or licensed collectors, any package or other container in which there is any firearm or ammunition without written notice to the carrier that such firearm or ammunition is being transported or shipped; except that any passenger who owns or legally possesses a firearm or ammunition being transported aboard any common or contract carrier for movement with the passenger in interstate or foreign commerce may deliver said firearm or ammunition into the custody of the pilot, captain, conductor or operator of such common or contract carrier for the

duration of the trip without violating any of the provisions of this chapter. No common or contract carrier shall require or cause any label, tag, or other written notice to be placed on the outside of any package, luggage, or other container that such package, luggage, or other container contains a firearm.

(f)

(1) It shall be unlawful for any common or contract carrier to transport or deliver in interstate or foreign commerce any firearm or ammunition with knowledge or reasonable cause to believe that the shipment, transportation, or receipt thereof would be in violation of the provisions of this chapter.

(2) It shall be unlawful for any common or contract carrier to deliver in interstate or foreign commerce any firearm without obtaining written acknowledgement of receipt from the recipient of the package or other container in which there is a firearm.

(g) It shall be unlawful for any person—

(1) who has been convicted in any court of, a crime punishable by imprisonment for a term exceeding one year;

(2) who is a fugitive from justice;

(3) who is an unlawful user of or addicted to any controlled substance (as defined in section 102 of the Controlled Substances Act (21 U.S.C. 802));

(4) who has been adjudicated as a mental defective or who has been committed to a mental institution;

(5) who, being an alien—

(A) is illegally or unlawfully in the United States; or

(B) except as provided in subsection (y)(2), has been admitted to the United States under a nonimmigrant visa (as that term is defined in section 101(a)(26) of the Immigration and Nationality Act (8 U.S.C. 1101(a)(26)));

(6) who has been discharged from the Armed Forces under dishonorable conditions;

(7) who, having been a citizen of the United States, has renounced his citizenship;

(8) who is subject to a court order that—

(A) was issued after a hearing of which such person received actual notice, and at which such person had an opportunity to participate;

(B) restrains such person from harassing, stalking, or threatening an intimate partner of such person or child of such intimate partner or person, or engaging in other conduct that would place an intimate partner in reasonable fear of bodily injury to the partner or child; and

(C)

(i) includes a finding that such person represents a credible threat to the physical safety of such intimate partner or child; or

(ii) by its terms explicitly prohibits the use, attempted use, or threatened use of physical force against such intimate partner or child that would reasonably be expected to cause bodily injury; or

(9) who has been convicted in any court of a misdemeanor crime of domestic violence,

to ship or transport in interstate or foreign commerce, or possess in or affecting commerce, any firearm or ammunition; or to receive any firearm or ammunition which has been shipped or transported in interstate or foreign commerce.

(h) It shall be unlawful for any individual, who to that individual's knowledge and while being employed for any person described in any paragraph of subsection (g) of this section, in the course of such employment—

(1) to receive, possess, or transport any firearm or ammunition in or affecting interstate or foreign commerce; or

(2) to receive any firearm or ammunition which has been shipped or transported in interstate or foreign commerce.

(i) It shall be unlawful for any person to transport or ship in interstate or foreign commerce, any stolen firearm or stolen ammunition, knowing or having reasonable cause to believe that the firearm or ammunition was stolen.

(j) It shall be unlawful for any person to receive, possess, conceal, store, barter, sell, or dispose of any stolen firearm or stolen ammunition, or pledge or accept as security for a loan any stolen firearm or stolen ammunition, which is moving as, which is a part of, which constitutes, or which has been shipped or transported in, interstate or foreign commerce, either before or after it was stolen, knowing or having reasonable cause to believe that the firearm or ammunition was stolen.

(k) It shall be unlawful for any person knowingly to transport, ship, or receive, in interstate or foreign commerce, any firearm which has had the importer's or manufacturer's serial number removed, obliterated, or altered or to possess or receive any firearm which has had the importer's or manufacturer's serial number removed, obliterated, or altered and has, at any time, been shipped or transported in interstate or foreign commerce.

(l) Except as provided in section 925(d) of this chapter, it shall be unlawful for any person knowingly to import or bring into the United States or any possession thereof any firearm or ammunition; and it shall be unlawful for any person knowingly to receive any firearm or ammunition which has been imported or brought into the United States or any possession thereof in violation of the provisions of this chapter.

(m) It shall be unlawful for any licensed importer, licensed manufacturer, licensed dealer, or licensed collector knowingly to make any false entry in, to fail to make appropriate entry in, or to fail to properly maintain, any record which he is

required to keep pursuant to section 923 of this chapter or regulations promulgated thereunder.

(n) It shall be unlawful for any person who is under indictment for a crime punishable by imprisonment for a term exceeding one year to ship or transport in interstate or foreign commerce any firearm or ammunition or receive any firearm or ammunition which has been shipped or transported in interstate or foreign commerce.

(o)

(1) Except as provided in paragraph (2), it shall be unlawful for any person to transfer or possess a machinegun.

(2) This subsection does not apply with respect to—

(A) a transfer to or by, or possession by or under the authority of, the United States or any department or agency thereof or a State, or a department, agency, or political subdivision thereof; or

(B) any lawful transfer or lawful possession of a machinegun that was lawfully possessed before the date this subsection takes effect.

(p)

(1) It shall be unlawful for any person to manufacture, import, sell, ship, deliver, possess, transfer, or receive any firearm—

(A) that, after removal of grips, stocks, and magazines, is not as detectable as the Security Exemplar, by walk-through metal detectors calibrated and operated to detect the Security Exemplar; or

(B) any major component of which, when subjected to inspection by the types of x-ray machines commonly used at airports, does not generate an image that accurately depicts the shape of the component. Barium sulfate or other compounds may be used in the fabrication of the component.

(2) For purposes of this subsection—

(A) the term "firearm" does not include the frame or receiver of any such weapon;

(B) the term "major component" means, with respect to a firearm, the barrel, the slide or cylinder, or the frame or receiver of the firearm; and

(C) the term "Security Exemplar" means an object, to be fabricated at the direction of the Attorney General, that is—

(i) constructed of, during the 12-month period beginning on the date of the enactment of this subsection, 3.7 ounces of material type 17–4 PH stainless steel in a shape resembling a handgun; and

(ii) suitable for testing and calibrating metal detectors:

(3) Under such rules and regulations as the Attorney General shall prescribe, this subsection shall not apply to the manufacture, possession, transfer, receipt, shipment, or delivery of a firearm by a licensed manufacturer or any person acting pursuant to a contract with a licensed manufacturer, for the purpose of examining and testing such firearm to determine whether paragraph (1) applies to such firearm. The Attorney General shall ensure that rules and regulations adopted pursuant to this paragraph do not impair the manufacture of prototype firearms or the development of new technology.

(4) The Attorney General shall permit the conditional importation of a firearm by a licensed importer or licensed manufacturer, for examination and testing to determine whether or not the unconditional importation of such firearm would violate this subsection.

(5) This subsection shall not apply to any firearm which—

(A) has been certified by the Secretary of Defense or the Director of Central Intelligence, after consultation with the Attorney General and the Administrator of the Federal Aviation Administration, as necessary for military or intelligence applications; and

(B) is manufactured for and sold exclusively to military or intelligence agencies of the United States.

(6) This subsection shall not apply with respect to any firearm manufactured in, imported into, or possessed in the United States before the date of the enactment of the Undetectable Firearms Act of 1988.

(q)

(1) The Congress finds and declares that—

(A) crime, particularly crime involving drugs and guns, is a pervasive, nationwide problem;

(B) crime at the local level is exacerbated by the interstate movement of drugs, guns, and criminal gangs;

(C) firearms and ammunition move easily in interstate commerce and have been found in increasing numbers in and around schools, as documented in numerous hearings in both the Committee on the Judiciary the House of Representatives and the Committee on the Judiciary of the Senate;

(D) in fact, even before the sale of a firearm, the gun, its component parts, ammunition, and the raw materials from which they are made have considerably moved in interstate commerce;

(E) while criminals freely move from State to State, ordinary citizens and foreign visitors may fear to travel to or through certain parts of the country due to concern about violent crime and gun violence, and parents may decline to send their children to school for the same reason;

(F) the occurrence of violent crime in school zones has resulted in a decline in the quality of education in our

country;

(G) this decline in the quality of education has an adverse impact on interstate commerce and the foreign commerce of the United States;

(H) States, localities, and school systems find it almost impossible to handle gun-related crime by themselves—even States, localities, and school systems that have made strong efforts to prevent, detect, and punish gun-related crime find their efforts unavailing due in part to the failure or inability of other States or localities to take strong measures; and

(I) the Congress has the power, under the interstate commerce clause and other provisions of the Constitution, to enact measures to ensure the integrity and safety of the Nation's schools by enactment of this subsection.

(2)

(A) It shall be unlawful for any individual knowingly to possess a firearm that has moved in or that otherwise affects interstate or foreign commerce at a place that the individual knows, or has reasonable cause to believe, is a school zone.

(B) Subparagraph (A) does not apply to the possession of a firearm—

(i) on private property not part of school grounds;

(ii) if the individual possessing the firearm is licensed to do so by the State in which the school zone is located or a political subdivision of the State, and the law of the State or political subdivision requires that, before an individual obtains such a license, the law enforcement authorities of the State or political subdivision verify that the individual is qualified under law to receive the license;

(iii) that is—

(I) not loaded; and

(II) in a locked container, or a locked firearms rack that is on a motor vehicle;

(iv) by an individual for use in a program approved by a school in the school zone;

(v) by an individual in accordance with a contract entered into between a school in the school zone and the individual or an employer of the individual;

(vi) by a law enforcement officer acting in his or her official capacity; or

(vii) that is unloaded and is possessed by an individual while traversing school premises for the purpose of gaining access to public or private lands open to hunting, if the entry on school premises is authorized by school authorities.

(3)

(A) Except as provided in subparagraph (B), it shall be unlawful for any person, knowingly or with reckless disregard for the safety of another, to discharge or attempt to discharge a firearm that has moved in or that otherwise affects interstate or foreign commerce at a place that the person knows is a school zone.

(B) Subparagraph (A) does not apply to the discharge of a firearm—

(i) on private property not part of school grounds;

(ii) as part of a program approved by a school in the school zone, by an individual who is participating in the program;

(iii) by an individual in accordance with a contract entered into between a school in a school zone and the individual or an employer of the individual; or

(iv) by a law enforcement officer acting in his or her official capacity.

(4) Nothing in this subsection shall be construed as preempting or preventing a State or local government from enacting a statute establishing gun free school zones as provided in this subsection.

(r) It shall be unlawful for any person to assemble from imported parts any semiautomatic rifle or any shotgun which is identical to any rifle or shotgun prohibited from importation under section 925(d)(3) of this chapter as not being particularly suitable for or readily adaptable to sporting purposes except that this subsection shall not apply to—

(1) the assembly of any such rifle or shotgun for sale or distribution by a licensed manufacturer to the United States or any department or agency thereof or to any State or any department, agency, or political subdivision thereof; or

(2) the assembly of any such rifle or shotgun for the purposes of testing or experimentation authorized by the Attorney General.

(s)

(1) Beginning on the date that is 90 days after the date of enactment of this subsection and ending on the day before the date that is 60 months after such date of enactment, it shall be unlawful for any licensed importer, licensed manufacturer, or licensed dealer to sell, deliver, or transfer a handgun (other than the return of a handgun to the person from whom it was received) to an individual who is not licensed under section 923, unless—

(A) after the most recent proposal of such transfer by the transferee—

(i) the transferor has—

(I) received from the transferee a statement of the transferee containing the information described in

paragraph (3);

(II) verified the identity of the transferee by examining the identification document presented;

(III) within 1 day after the transferee furnishes the statement, provided notice of the contents of the statement to the chief law enforcement officer of the place of residence of the transferee; and

(IV) within 1 day after the transferee furnishes the statement, transmitted a copy of the statement to the chief law enforcement officer of the place of residence of the transferee; and

(ii)

(I) 5 business days (meaning days on which State offices are open) have elapsed from the date the transferor furnished notice of the contents of the statement to the chief law enforcement officer, during which period the transferor has not received information from the chief law enforcement officer that receipt or possession of the handgun by the transferee would be in violation of Federal, State, or local law; or

(II) the transferor has received notice from the chief law enforcement officer that the officer has no information indicating that receipt or possession of the handgun by the transferee would violate Federal, State, or local law;

(B) the transferee has presented to the transferor a written statement, issued by the chief law enforcement officer of the place of residence of the transferee during the 10-day period ending on the date of the most recent proposal of such transfer by the transferee, stating that the transferee requires access to a handgun because of a threat to the life of the transferee or of any member of the household of the transferee;

(C)

(i) the transferee has presented to the transferor a permit that—

(I) allows the transferee to possess or acquire a handgun; and

(II) was issued not more than 5 years earlier by the State in which the transfer is to take place; and

(ii) the law of the State provides that such a permit is to be issued only after an authorized government official has verified that the information available to such official does not indicate that possession of a handgun by the transferee would be in violation of the law;

(D) the law of the State requires that, before any licensed importer, licensed manufacturer, or licensed dealer completes the transfer of a handgun to an individual who is not licensed under section 923, an authorized government official verify that the information available to such official does not indicate that possession of a handgun by the transferee would be in violation of law;

(E) the Attorney General has approved the transfer under section 5812 of the Internal Revenue Code of 1986; or

(F) on application of the transferor, the Attorney General has certified that compliance with subparagraph (A)(i)(III) is impracticable because—

(i) the ratio of the number of law enforcement officers of the State in which the transfer is to occur to the number of square miles of land area of the State does not exceed 0.0025;

(ii) the business premises of the transferor at which the transfer is to occur are extremely remote in relation to the chief law enforcement officer; and

(iii) there is an absence of telecommunications facilities in the geographical area in which the business premises are located.

(2) A chief law enforcement officer to whom a transferor has provided notice pursuant to paragraph (1)(A)(i)(III) shall make a reasonable effort to ascertain within 5 business days whether receipt or possession would be in violation of the law, including research in whatever State and local recordkeeping systems are available and in a national system designated by the Attorney General.

(3) The statement referred to in paragraph (1)(A)(i)(I) shall contain only—

(A) the name, address, and date of birth appearing on a valid identification document (as defined in section 1028(d)(1)) of the transferee containing a photograph of the transferee and a description of the identification used;

(B) a statement that the transferee—

(i) is not under indictment for, and has not been convicted in any court of, a crime punishable by imprisonment for a term exceeding 1 year, and has not been convicted in any court of a misdemeanor crime of domestic violence;

(ii) is not a fugitive from justice;

(iii) is not an unlawful user of or addicted to any controlled substance (as defined in section 102 of the Controlled Substances Act);

(iv) has not been adjudicated as a mental defective or been committed to a mental institution;

(v) is not an alien who—

(I) is illegally or unlawfully in the United States; or

(II) subject to subsection (y)(2), has been admitted to the United States under a nonimmigrant visa (as that

term is defined in section 101(a)(26) of the Immigration and Nationality Act (8 U.S.C. 1101(a)(26)));

(vi) has not been discharged from the Armed Forces under dishonorable conditions; and

(vii) is not a person who, having been a citizen of the United States, has renounced such citizenship;

(C) the date the statement is made; and

(D) notice that the transferee intends to obtain a handgun from the transferor.

(4) Any transferor of a handgun who, after such transfer, receives a report from a chief law enforcement officer containing information that receipt or possession of the handgun by the transferee violates Federal, State, or local law shall, within 1 business day after receipt of such request, communicate any information related to the transfer that the transferor has about the transfer and the transferee to—

(A) the chief law enforcement officer of the place of business of the transferor; and

(B) the chief law enforcement officer of the place of residence of the transferee.

(5) Any transferor who receives information, not otherwise available to the public, in a report under this subsection shall not disclose such information except to the transferee, to law enforcement authorities, or pursuant to the direction of a court of law.

(6)

(A) Any transferor who sells, delivers, or otherwise transfers a handgun to a transferee shall retain the copy of the statement of the transferee with respect to the handgun transaction, and shall retain evidence that the transferor has complied with subclauses (III) and (IV) of paragraph (1)(A)(i) with respect to the statement.

(B) Unless the chief law enforcement officer to whom a statement is transmitted under paragraph (1)(A)(i)(IV) determines that a transaction would violate Federal, State, or local law—

(i) the officer shall, within 20 business days after the date the transferee made the statement on the basis of which the notice was provided, destroy the statement, any record containing information derived from the statement, and any record created as a result of the notice required by paragraph (1)(A)(i)(III);

(ii) the information contained in the statement shall not be conveyed to any person except a person who has a need to know in order to carry out this subsection; and

(iii) the information contained in the statement shall not be used for any purpose other than to carry out this subsection.

(C) If a chief law enforcement officer determines that an individual is ineligible to receive a handgun and the individual requests the officer to provide the reason for such determination, the officer shall provide such reasons to the individual in writing within 20 business days after receipt of the request.

(7) A chief law enforcement officer or other person responsible for providing criminal history background information pursuant to this subsection shall not be liable in an action at law for damages—

(A) for failure to prevent the sale or transfer of a handgun to a person whose receipt or possession of the handgun is unlawful under this section; or

(B) for preventing such a sale or transfer to a person who may lawfully receive or possess a handgun.

(8) For purposes of this subsection, the term "chief law enforcement officer" means the chief of police, the sheriff, or an equivalent officer or the designee of any such individual.

(9) The Attorney General shall take necessary actions to ensure that the provisions of this subsection are published and disseminated to licensed dealers, law enforcement officials, and the public.

(t)

(1) Beginning on the date that is 30 days after the Attorney General notifies licensees under section 103(d) of the Brady Handgun Violence Prevention Act that the national instant criminal background check system is established, a licensed importer, licensed manufacturer, or licensed dealer shall not transfer a firearm to any other person who is not licensed under this chapter, unless—

(A) before the completion of the transfer, the licensee contacts the national instant criminal background check system established under section 103 of that Act;

(B)

(i) the system provides the licensee with a unique identification number; or

(ii) subject to subparagraph (C), 3 business days (meaning a day on which State offices are open) have elapsed since the licensee contacted the system, and the system has not notified the licensee that the receipt of a firearm by such other person would violate subsection (g) or (n) of this section, or State, local, or Tribal law;

(C) in the case of a person less than 21 years of age, in addition to all other requirements of this chapter—

(i) the system provides the licensee with a unique identification number;

(ii) 3 business days (meaning a day on which State offices are open) have elapsed since the licensee contacted the system, and the system has not notified the licensee that cause exists to further investigate a possibly disqualifying juvenile record under subsection (d); or

(iii) in the case of such a person with respect to whom the system notifies the licensee in accordance with clause

(ii) that cause exists to further investigate a possibly disqualifying juvenile record under subsection (d), 10 business days (meaning a day on which State offices are open) have elapsed since the licensee contacted the system, and the system has not notified the licensee that—

(I) transferring the firearm to the other person would violate subsection (d) of this section; or

(II) receipt of a firearm by the other person would violate subsection (g) or (n) of this section, or State, local, or Tribal law; and

(D) the transferor has verified the identity of the transferee by examining a valid identification document (as defined in section 1028(d) of this title) of the transferee containing a photograph of the transferee.

(2) If transfer or receipt of a firearm would not violate subsection (d), (g), or (n) (as applicable) or State, local or Tribal law, the system shall—

(A) assign a unique identification number to the transfer;

(B) provide the licensee with the number; and

(C) destroy all records of the system with respect to the call (other than the identifying number and the date the number was assigned) and all records of the system relating to the person or the transfer.

(3) Paragraph (1) shall not apply to a firearm transfer between a licensee and another person if—

(A)

(i) such other person has presented to the licensee a permit that—

(I) allows such other person to possess or acquire a firearm; and

(II) was issued not more than 5 years earlier by the State in which the transfer is to take place; and

(ii) the law of the State provides that such a permit is to be issued only after an authorized government official has verified that the information available to such official does not indicate that possession of a firearm by such other person would be in violation of law;

(B) the Attorney General has approved the transfer under section 5812 of the Internal Revenue Code of 1986; or

(C) on application of the transferor, the Attorney General has certified that compliance with paragraph (1)(A) is impracticable because—

(i) the ratio of the number of law enforcement officers of the State in which the transfer is to occur to the number of square miles of land area of the State does not exceed 0.0025;

(ii) the business premises of the licensee at which the transfer is to occur are extremely remote in relation to the chief law enforcement officer (as defined in subsection (s)(8)); and

(iii) there is an absence of telecommunications facilities in the geographical area in which the business premises are located.

(4) If the national instant criminal background check system notifies the licensee that the information available to the system does not demonstrate that the transfer of a firearm to or receipt of a firearm by such other person would violate subsection (d), (g), or (n) (as applicable) or State local, or Tribal law, and the licensee transfers a firearm to such other person, the licensee shall include in the record of the transfer the unique identification number provided by the system with respect to the transfer.

(5) If the licensee knowingly transfers a firearm to such other person and knowingly fails to comply with paragraph (1) of this subsection with respect to the transfer and, at the time such other person most recently proposed the transfer, the national instant criminal background check system was operating and information was available to the system demonstrating that transfer of a firearm to or receipt of a firearm by such other person would violate subsection (d), (g), or (n) (as applicable) of this section or State 5 local, or Tribal law, the Attorney General may, after notice and opportunity for a hearing, suspend for not more than 6 months or revoke any license issued to the licensee under section 923, and may impose on the licensee a civil fine of not more than $5,000.

(6) Neither a local government nor an employee of the Federal Government or of any State or local government, responsible for providing information to the national instant criminal background check system shall be liable in an action at law for damages—

(A) for failure to prevent the sale or transfer of a firearm to a person whose receipt or possession of the firearm is unlawful under this section; or

(B) for preventing such a sale or transfer to a person who may lawfully receive or possess a firearm.

(u) It shall be unlawful for a person to steal or unlawfully take or carry away from the person or the premises of a person who is licensed to engage in the business of importing, manufacturing, or dealing in firearms, any firearm in the licensee's business inventory that has been shipped or transported in interstate or foreign commerce.

(v) , (w) Repealed. Pub. L. 103–322, title XI, § 110105(2), Sept. 13, 1994, 108 Stat. 2000.]

(x)

(1) It shall be unlawful for a person to sell, deliver, or otherwise transfer to a person who the transferor knows or has reasonable cause to believe is a juvenile—

(A) a handgun; or

(B) ammunition that is suitable for use only in a handgun.

(2) It shall be unlawful for any person who is a juvenile to knowingly possess—

(A) a handgun; or

(B) ammunition that is suitable for use only in a handgun.

(3) This subsection does not apply to—

(A) a temporary transfer of a handgun or ammunition to a juvenile or to the possession or use of a handgun or ammunition by a juvenile if the handgun and ammunition are possessed and used by the juvenile—

(i) in the course of employment, in the course of ranching or farming related to activities at the residence of the juvenile (or on property used for ranching or farming at which the juvenile, with the permission of the property owner or lessee, is performing activities related to the operation of the farm or ranch), target practice, hunting, or a course of instruction in the safe and lawful use of a handgun;

(ii) with the prior written consent of the juvenile's parent or guardian who is not prohibited by Federal, State, or local law from possessing a firearm, except—

(I) during transportation by the juvenile of an unloaded handgun in a locked container directly from the place of transfer to a place at which an activity described in clause (i) is to take place and transportation by the juvenile of that handgun, unloaded and in a locked container, directly from the place at which such an activity took place to the transferor; or

(II) with respect to ranching or farming activities as described in clause (i), a juvenile may possess and use a handgun or ammunition with the prior written approval of the juvenile's parent or legal guardian and at the direction of an adult who is not prohibited by Federal, State or local law from possessing a firearm;

(iii) the juvenile has the prior written consent in the juvenile's possession at all times when a handgun is in the possession of the juvenile; and

(iv) in accordance with State and local law;

(B) a juvenile who is a member of the Armed Forces of the United States or the National Guard who possesses or is armed with a handgun in the line of duty;

(C) a transfer by inheritance of title (but not possession) of a handgun or ammunition to a juvenile; or

(D) the possession of a handgun or ammunition by a juvenile taken in defense of the juvenile or other persons against an intruder into the residence of the juvenile or a residence in which the juvenile is an invited guest.

(4) A handgun or ammunition, the possession of which is transferred to a juvenile in circumstances in which the transferor is not in violation of this subsection shall not be subject to permanent confiscation by the Government if its possession by the juvenile subsequently becomes unlawful because of the conduct of the juvenile, but shall be returned to the lawful owner when such handgun or ammunition is no longer required by the Government for the purposes of investigation or prosecution.

(5) For purposes of this subsection, the term "juvenile" means a person who is less than 18 years of age.

(6)

(A) In a prosecution of a violation of this subsection, the court shall require the presence of a juvenile defendant's parent or legal guardian at all proceedings.

(B) The court may use the contempt power to enforce subparagraph (A).

(C) The court may excuse attendance of a parent or legal guardian of a juvenile defendant at a proceeding in a prosecution of a violation of this subsection for good cause shown.

(y) *Provisions Relating to Aliens Admitted Under Nonimmigrant Visas.*—.

(1) *Definitions.*—. In this subsection—

(A) the term "alien" has the same meaning as in section 101(a)(3) of the Immigration and Nationality Act (8 U.S.C. 1101(a)(3)); and

(B) the term "nonimmigrant visa" has the same meaning as in section 101(a)(26) of the Immigration and Nationality Act (8 U.S.C. 1101(a)(26)).

(2) *Exceptions.*—. Subsections (d)(5)(B), (g)(5)(B), and (s)(3)(B)(v)(II) do not apply to any alien who has been lawfully admitted to the United States under a nonimmigrant visa, if that alien is—

(A) admitted to the United States for lawful hunting or sporting purposes or is in possession of a hunting license or permit lawfully issued in the United States;

(B) an official representative of a foreign government who is—

(i) accredited to the United States Government or the Government's mission to an international organization having its headquarters in the United States; or

(ii) en route to or from another country to which that alien is accredited;

(C) an official of a foreign government or a distinguished foreign visitor who has been so designated by the Department of State; or

(D) a foreign law enforcement officer of a friendly foreign government entering the United States on official law

enforcement business.

(3) *Waiver.*—.

(A) *Conditions for waiver.*—. Any individual who has been admitted to the United States under a nonimmigrant visa may receive a waiver from the requirements of subsection (g)(5), if—

(i) the individual submits to the Attorney General a petition that meets the requirements of subparagraph (C); and

(ii) the Attorney General approves the petition.

(B) *Petition.*—. Each petition under subparagraph (B) shall—

(i) demonstrate that the petitioner has resided in the United States for a continuous period of not less than 180 days before the date on which the petition is submitted under this paragraph; and

(ii) include a written statement from the embassy or consulate of the petitioner, authorizing the petitioner to acquire a firearm or ammunition and certifying that the alien would not, absent the application of subsection (g)(5)(B), otherwise be prohibited from such acquisition under subsection (g).

(C) *Approval of petition.*—. The Attorney General shall approve a petition submitted in accordance with this paragraph, if the Attorney General determines that waiving the requirements of subsection (g)(5)(B) with respect to the petitioner—

(i) would be in the interests of justice; and

(ii) would not jeopardize the public safety.

(z) *Secure Gun Storage or Safety Device.*—.

(1) *In general.*—. Except as provided under paragraph (2), it shall be unlawful for any licensed importer, licensed manufacturer, or licensed dealer to sell, deliver, or transfer any handgun to any person other than any person licensed under this chapter, unless the transferee is provided with a secure gun storage or safety device (as defined in section 921(a)(34)) for that handgun.

(2) *Exceptions.*—. Paragraph (1) shall not apply to—

(A)

(i) the manufacture for, transfer to, or possession by, the United States, a department or agency of the United States, a State, or a department, agency, or political subdivision of a State, of a handgun; or

(ii) the transfer to, or possession by, a law enforcement officer employed by an entity referred to in clause (i) of a handgun for law enforcement purposes (whether on or off duty); or

(B) the transfer to, or possession by, a rail police officer directly employed by or contracted by a rail carrier and certified or commissioned as a police officer under the laws of a State of a handgun for purposes of law enforcement (whether on or off duty);

(C) the transfer to any person of a handgun listed as a curio or relic by the Secretary pursuant to section 921(a)(13); or

(D) the transfer to any person of a handgun for which a secure gun storage or safety device is temporarily unavailable for the reasons described in the exceptions stated in section 923(e), if the licensed manufacturer, licensed importer, or licensed dealer delivers to the transferee within 10 calendar days from the date of the delivery of the handgun to the transferee a secure gun storage or safety device for the handgun.

(3) *Liability for use.*—.

(A) *In general.*—. Notwithstanding any other provision of law, a person who has lawful possession and control of a handgun, and who uses a secure gun storage or safety device with the handgun, shall be entitled to immunity from a qualified civil liability action.

(B) *Prospective actions.*—. A qualified civil liability action may not be brought in any Federal or State court.

(C) *Defined term.*—. As used in this paragraph, the term "qualified civil liability action"—

(i) means a civil action brought by any person against a person described in subparagraph (A) for damages resulting from the criminal or unlawful misuse of the handgun by a third party, if—

(I) the handgun was accessed by another person who did not have the permission or authorization of the person having lawful possession and control of the handgun to have access to it; and

(II) at the time access was gained by the person not so authorized, the handgun had been made inoperable by use of a secure gun storage or safety device; and

(ii) shall not include an action brought against the person having lawful possession and control of the handgun for negligent entrustment or negligence per se.

[APPENDIX A Repealed. Pub. L. 103–322, title XI, § 110105(2), Sept. 13, 1994, 108 Stat. 2000]

28 U.S.C. § 566

Powers and duties

(a) It is the primary role and mission of the United States Marshals Service to provide for the security and to obey, execute, and enforce all orders of the United States District Courts, the United States Courts of Appeals, the Court of International Trade, and the United States Tax Court, as provided by law.

(b) The United States marshal of each district is the marshal of the district court and of the court of appeals when sitting in that district, and of the Court of International Trade holding sessions in that district, and may, in the discretion of the respective courts, be required to attend any session of court.

(c) Except as otherwise provided by law or Rule of Procedure, the United States Marshals Service shall execute all lawful writs, process, and orders issued under the authority of the United States, and shall command all necessary assistance to execute its duties.

(d) Each United States marshal, deputy marshal, and any other official of the Service as may be designated by the Director may carry firearms and make arrests without warrant for any offense against the United States committed in his or her presence, or for any felony cognizable under the laws of the United States if he or she has reasonable grounds to believe that the person to be arrested has committed or is committing such felony.

(e)

(1) The United States Marshals Service is authorized to—

(A) provide for the personal protection of Federal jurists, court officers, witnesses, and other threatened persons in the interests of justice where criminal intimidation impedes on the functioning of the judicial process or any other official proceeding;

(B) investigate such fugitive matters, both within and outside the United States, as directed by the Attorney General;

(C) issue administrative subpoenas in accordance with section 3486 of title 18, solely for the purpose of investigating unregistered sex offenders (as defined in such section 3486); and

(D) assist State, local, and other Federal law enforcement agencies, upon the request of such an agency, in locating and recovering missing children.

(2) Nothing in paragraph (1)(B) shall be construed to interfere with or supersede the authority of other Federal agencies or bureaus.

(f) In accordance with procedures established by the Director, and except for public money deposited under section 2041 of this title, each United States marshal shall deposit public moneys that the marshal collects into the Treasury, subject to disbursement by the marshal. At the end of each accounting period, the earned part of public moneys accruing to the United States shall be deposited in the Treasury to the credit of the appropriate receipt accounts.

(g) Prior to resignation, retirement, or removal from office—

(1) a United States marshal shall deliver to the marshal's successor all prisoners in his custody and all unserved process; and

(2) a deputy marshal shall deliver to the marshal all process in the custody of the deputy marshal.

(h) The United States marshals shall pay such office expenses of United States Attorneys as may be directed by the Attorney General.

(i) The Director of the United States Marshals Service shall consult with the Judicial Conference of the United States on a continuing basis regarding the security requirements for the judicial branch of the United States Government, to ensure that the views of the Judicial Conference regarding the security requirements for the judicial branch of the Federal Government are taken into account when determining staffing levels, setting priorities for programs regarding judicial security, and allocating judicial security resources. In this paragraph, the term "judicial security" includes the security of buildings housing the judiciary, the personal security of judicial officers, the assessment of threats made to judicial officers, and the protection of all other judicial personnel. The United States Marshals Service retains final authority regarding security requirements for the judicial branch of the Federal Government.

28 U.S.C. § 1331

Federal question

The district courts shall have original jurisdiction of all civil actions arising under the Constitution, laws, or treaties of the United States.

28 U.S.C. § 1915

Proceedings in forma pauperis

(a)

(1) Subject to subsection (b), any court of the United States may authorize the commencement, prosecution or defense of any suit, action or proceeding, civil or criminal, or appeal therein, without prepayment of fees or security therefor, by a person who submits an affidavit that includes a statement of all assets such prisoner possesses that the person is unable to pay such fees or give security therefor. Such affidavit shall state the nature of the action, defense or appeal and affiant's belief that the person is entitled to redress.

(2) A prisoner seeking to bring a civil action or appeal a judgment in a civil action or proceeding without prepayment of fees or security therefor, in addition to filing the affidavit filed under paragraph (1), shall submit a certified copy of the trust fund account statement (or institutional equivalent) for the prisoner for the 6-month period immediately preceding the filing of the complaint or notice of appeal, obtained from the appropriate official of each prison at which the prisoner is or was confined.

(3) An appeal may not be taken in forma pauperis if the trial court certifies in writing that it is not taken in good faith.

(b)

(1) Notwithstanding subsection (a), if a prisoner brings a civil action or files an appeal in forma pauperis, the prisoner shall be required to pay the full amount of a filing fee. The court shall assess and, when funds exist, collect, as a partial payment of any court fees required by law, an initial partial filing fee of 20 percent of the greater of—

(A) the average monthly deposits to the prisoner's account; or

(B) the average monthly balance in the prisoner's account for the 6-month period immediately preceding the filing of the complaint or notice of appeal.

(2) After payment of the initial partial filing fee, the prisoner shall be required to make monthly payments of 20 percent of the preceding month's income credited to the prisoner's account. The agency having custody of the prisoner shall forward payments from the prisoner's account to the clerk of the court each time the amount in the account exceeds $10 until the filing fees are paid.

(3) In no event shall the filing fee collected exceed the amount of fees permitted by statute for the commencement of a civil action or an appeal of a civil action or criminal judgment.

(4) In no event shall a prisoner be prohibited from bringing a civil action or appealing a civil or criminal judgment for the reason that the prisoner has no assets and no means by which to pay the initial partial filing fee.

(c) Upon the filing of an affidavit in accordance with subsections (a) and (b) and the prepayment of any partial filing fee as may be required under subsection (b), the court may direct payment by the United States of the expenses of (1) printing the record on appeal in any civil or criminal case, if such printing is required by the appellate court; (2) preparing a transcript of proceedings before a United States magistrate judge in any civil or criminal case, if such transcript is required by the district court, in the case of proceedings conducted under section 636(b) of this title or under section 3401(b) of title 18, United States Code; and (3) printing the record on appeal if such printing is required by the appellate court, in the case of proceedings conducted pursuant to section 636(c) of this title. Such expenses shall be paid when authorized by the Director of the Administrative Office of the United States Courts.

(d) The officers of the court shall issue and serve all process, and perform all duties in such cases. Witnesses shall attend as in other cases, and the same remedies shall be available as are provided for by law in other cases.

(e)

(1) The court may request an attorney to represent any person unable to afford counsel.

(2) Notwithstanding any filing fee, or any portion thereof, that may have been paid, the court shall dismiss the case at any time if the court determines that—

(A) the allegation of poverty is untrue; or

(B) the action or appeal—

(i) is frivolous or malicious;

(ii) fails to state a claim on which relief may be granted; or

(iii) seeks monetary relief against a defendant who is immune from such relief.

(f)

(1) Judgment may be rendered for costs at the conclusion of the suit or action as in other proceedings, but the United States shall not be liable for any of the costs thus incurred. If the United States has paid the cost of a stenographic transcript or printed record for the prevailing party, the same shall be taxed in favor of the United States.

(2)

(A) If the judgment against a prisoner includes the payment of costs under this subsection, the prisoner shall be required to pay the full amount of the costs ordered.

(B) The prisoner shall be required to make payments for costs under this subsection in the same manner as is provided for filing fees under subsection (a)(2).

(C) In no event shall the costs collected exceed the amount of the costs ordered by the court.

(g) In no event shall a prisoner bring a civil action or appeal a judgment in a civil action or proceeding under this section if the prisoner has, on 3 or more prior occasions, while incarcerated or detained in any facility, brought an action or appeal in a court of the United States that was dismissed on the grounds that it is frivolous, malicious, or fails to state a claim upon which relief may be granted, unless the prisoner is under imminent danger of serious physical injury.

(h) As used in this section, the term "prisoner" means any person incarcerated or detained in any facility who is accused of, convicted of, sentenced for, or adjudicated delinquent for, violations of criminal law or the terms and conditions of parole, probation, pretrial release, or diversionary program.

42 U.S.C. § 1983

Civil action for deprivation of rights

Every person who, under color of any statute, ordinance, regulation, custom, or usage, of any State or Territory or the District of Columbia, subjects, or causes to be subjected, any citizen of the United States or other person within the jurisdiction thereof to the deprivation of any rights, privileges, or immunities secured by the Constitution and laws, shall be liable to the party injured in an action at law, suit in equity, or other proper proceeding for redress, except that in any action brought against a judicial officer for an act or omission taken in such officer's judicial capacity, injunctive relief shall not be granted unless a declaratory decree was violated or declaratory relief was unavailable. For the purposes of this section, any Act of Congress applicable exclusively to the District of Columbia shall be considered to be a statute of the District of Columbia.

28 C.F.R. § 542.10

Purpose and scope. (eCFR, current as of Oct. 28, 2026)

(a) *Purpose.* The purpose of the Administrative Remedy Program is to allow an inmate to seek formal review of an issue relating to any aspect of his/her own confinement. An inmate may not submit a Request or Appeal on behalf of another inmate.

(b) *Scope.* This Program applies to all inmates in institutions operated by the Bureau of Prisons, to inmates designated to contract Community Corrections Centers (CCCs) under Bureau of Prisons responsibility, and to former inmates for issues that arose during their confinement. This Program does not apply to inmates confined in other non-federal facilities.

(c) *Statutorily-mandated procedures.* There are statutorily-mandated procedures in place for tort claims (28 CFR part 543, subpart C), Inmate Accident Compensation claims (28 CFR part 301), and Freedom of Information Act or Privacy Act requests (28 CFR part 513, subpart D). If an inmate raises an issue in a request or appeal that cannot be resolved through the Administrative Remedy Program, the Bureau will refer the inmate to the appropriate statutorily-mandated procedures.

[67 FR 50805, Aug. 6, 2002]

Cites not resolved

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